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File Number: 378-02-0017

July 24, 2025

Evidence Intake Center
Department of Veterans Affairs
P.O. Box 5210
Janesville, WI 53547-5210

Re: Iain Melchizedek – Objection to Proposed VR&E MRG Case Closure

To Whom It May Concern:

We submit this correspondence jointly: Iain Melchizedek, the veteran at issue, and his independent legal counsel, in formal objection to the Department's July 15, 2025, proposal to close Mr. Melchizedek's Chapter 31 (VR&E) case under the designation of Maximum Rehabilitation Gain (MRG). Enclosed is an affidavit authored and signed by Mr. Melchizedek, which provides the full legal, factual, and procedural record relevant to this matter.

The proposed MRG closure is both factually unsupported and legally indefensible. Mr. Melchizedek has completed all objectives set forth in his Individualized Written Rehabilitation Plan (IWRP), including the completion of a graduate degree, full participation in medical and mental health services, and engagement in employment-related programming. The governing regulation, 38 C.F.R. § 21.283, provides that a veteran "shall be declared rehabilitated" once these objectives are satisfied. That regulatory standard has been met. There is no legal or factual basis for denying him that status.

The MRG classification, by contrast, applies only to veterans who are unwilling or unable to continue rehabilitation services. That does not apply here. Mr. Melchizedek did not disengage from services; he completed them. The record contains no evidence of refusal, failure, or noncompliance. Thus, the proposed MRG closure is not only inappropriate, it is arbitrary.

Worse still, the closure attempt reveals a growing contradiction in the VA's own logic:

- If all IWRP objectives are completed, MRG is categorically inapplicable.
- If § 21.283 governs, then the veteran must be declared "Rehabilitated."

If neither classification is applied despite full compliance, then the Department has ceased operating under law and begun defaulting to discretionary control.

This amounts to a breakdown in regulatory adherence and creates an administrative deadlock. This is a situation that cannot be resolved through further policy improvisation.

Furthermore, we must emphasize that Mr. Melchizedek does not consent to the use of internal VA policy frameworks in lieu of binding federal regulations. The IWRP was created and governed under regulatory authority. The case must be closed under that same authority. Any attempt to override statute with internal classification schemes, especially where those schemes contradict the plain meaning of the law, is procedurally improper and legally suspect.

This obstruction is especially concerning in light of Mr. Melchizedek's role as a whistleblower. As detailed in the accompanying affidavit, his challenges to agency misconduct have been met with evasion, misapplication of procedure, and now, denial of a rightful closure designation. When lawful self-advocacy is treated as insubordination, the administrative process no longer functions as a system of rehabilitation. It becomes a system of retaliation.

The affidavit submitted here is not merely a legal filing. It is a protected act of public record. Authored by Mr. Melchizedek based on firsthand experience, legal research, and original documentation, it retains full protection under the First Amendment and the Copyright Act of 1976. He reserves the right to publish this material in full or in part in connection with legal advocacy, policy reform, or public education.

As stated in the affidavit:

“This document stands as evidence that the process often becomes the punishment when individuals insist that institutions follow their own stated rules.”

We respectfully request the following:

1. That the assigned VBA Counselor and her supervising official formally acknowledge that this case is in an administrative deadlock, caused by the misapplication of VA regulations to an established factual record. Specifically, this is a record that supports closure under 38 C.F.R. § 21.283, not the proposed MRG designation.
2. That the Counselor and supervisor further acknowledge the improper application of Maximum Rehabilitation Gain (MRG), which is an internal policy designation, not a regulatory outcome. Since the IWRP was created and completed under statutory authority, the closure must be governed by regulation, not discretion.
3. That the Department acknowledges that the individuals currently handling this case lack formal legal training, and that this lack of legal competency has contributed to ongoing procedural failure, including improper disclosures and repeated deviation from the VR&E framework.
4. That the VA rescind the proposed MRG closure.
5. That Mr. Melchizedek’s case be closed under the status of “Rehabilitated,” pursuant to 38 C.F.R. § 21.283.
6. That written acknowledgment of this objection and affidavit be entered into the VBA case file in full, without omission or alteration.
7. That a supervisory official conducts an immediate regulatory review of the closure decision, applying the law, not discretionary interpretations or internal memoranda.

While we have prepared a supporting appendix for future filing, all referenced correspondence and records should already exist within the VBA’s case management system, assuming, of course, that the system is operating in accordance with its legally mandated retention policies and the compliance standards the Department routinely cites in public materials and oversight briefings. We would hate for that to prove untrue.

Respectfully submitted,

Counsel for Iain A. Melchizedek

With and on behalf of the Veteran

Enclosure:

Affidavit of Iain Melchizedek – Objection to MRG Closure

Proposed Closure Letter from Amy Coey, VBA Counselor.

Iain Melchizedek

@gmail.com

VETERANS BENEFITS ADMINISTRATION

IAIN MELCHIZEDEK,

Veteran,

and;

VETERANS BENEFITS ADMINISTRATION,

Government Entity

File Number: -0017

BACKGROUND OF MELCHIZEDEK

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I, Iain Melchizedek, VA File Number M0017, declare under penalty of perjury that:

1. I am a veteran of the United States Coast Guard.
2. I served under the Department of Homeland Security, where I was honorably discharged from active duty in February 2009, as documented on DD Form 214. I continued in active reserve status for six additional years until my contract ended in August 2014.
3. Throughout my military service as a domestic intelligence analyst and small boat captain, I participated in critical search and rescue operations and humanitarian missions that earned me recognition as a decorated veteran.
4. My service reflects a lifelong commitment to humanity, dignity and Justice.
5. My life is not a case file to be reduced for bureaucratic convenience. It is a continuous, interconnected reality shaped by political, institutional, and personal forces, none of which occur in isolation.
6. I am the only Authority qualified to document the full scope of this case, because I lived inside its consequences 24 hours a day, while government officials interacted with fragments, filtered

1 through systems they barely manage, and misrepresent through records they cannot even track
2 or reference reliably.

- 3 7. This affidavit exists to expose this fact, and I do so here without omission, apology, or
4 permission.
5

6 **Veteran Readiness and Employment Program Entitlement Approval**

- 7 8. On June 14, 2023, I was interviewed by a Veterans Benefit Administration (VBA) Vocational
8 Rehabilitation Counselor, Ms. Amy Coey (hereinafter referred to as "VBA Counselor"), to
9 determine my eligibility for participation in the Veteran Readiness and Employment (VR&E)
10 Program.
11

- 12 9. As such, my case with the VBA was initiated under the political administration of President
13 Joseph R. Biden. At the same time, the Roberts Court presided over key judicial rulings during
14 President Biden's administration. Through the relevant period, the federal district courts were
15 predominantly composed of judges appointed by Democratic presidents.
16

- 17 10. At that interview, the VBA Counselor inquired as to whether I had any criminal history.

- 18 11. I informed her that I had no criminal record. However, I also disclosed that just one day prior,
19 on June 13, 2023, my residence had been raided by agents of the Office of Inspector General
20 (OIG).
21

- 22 12. I explained that this action was retaliatory and followed by the filing of a whistleblower
23 complaint against the Democratic-established Consumer Financial Protection Bureau (CFPB).

- 24 13. Notably, the CFPB operates without any oversight whatsoever, meaning the OIG lacked proper
25 authority to conduct this raid on my residence.

- 26 14. In that complaint, I documented that CFPB management had engaged in serious misconduct
27 involving the misuse of consumer data collected during compliance reviews:
28

- i. This included the fabrication of sampling outputs and the issuance of examination reports based on falsified, mischaracterized and distorted data.
- ii. It further noted that the misconduct appeared to disproportionately affect financial institutions aligned with conservative or Republican viewpoints, raising credible concerns about ideological bias and the unlawful surveillance of private businesses and citizens by government officials:
1. These abuses reflect broader structural failures among public-sector agencies, and its officials, including the OIG, Department of Justice (DOJ), and the Department of Veterans Affairs (DVA) and all its sub-agencies, including the VBA, all of which operate without meaningful data governance frameworks, regard to any *laws* or *rights* of private citizens or private citizen's data.
 - a. Veterans remain private citizens, community members, and advocates whose contributions to civilian life extend well beyond their military service, notwithstanding any contrary assumptions by VBA officials.

Program Commencement & Compliance

15. On the following day, June 15, 2023, at 3:13 PM, I received official notification from the assigned Vocational VBA Counselor, confirming that I had been determined entitled to participate in the Department of Veterans Affairs' VR&E program.
16. Following my approval for participation in the VR&E program, I selected a program of study in the data analytics field.

- 1 17. As part of this process, I submitted graduate applications to two accredited post-secondary
2 institutions: Boston University (BU) and Northeastern University (NEU).
- 3 18. My application to BU was denied, whereas I was formally accepted into Northeastern
4 University's Master of Professional Studies in Analytics program, as confirmed in the
5 admission letter dated August 21, 2023.
- 6 19. On August 21, 2023, following my formal acceptance into the Master of Professional Studies
7 in Analytics program at NU, I notified the VBA Counselor of the program cost and proactively
8 drafted the required high-cost justification memo, given that total tuition exceeded the VA's
9 \$50,000 annual threshold.
- 10 20. I independently researched and completed the full high-cost justification memo, addressing
11 each required element in detail, and submitted it to the VBA Counselor.
- 12 21. This written justification, authored solely by me, provided a comprehensive rationale for
13 attending the higher-cost institution, including documentation of my denial from the lower-
14 cost alternative, BU.
- 15 22. On September 6, 2023, I signed the *Vocational Rehabilitation Guidelines and Debt Prevention*
16 form, which explicitly identified my program goal as "MPS Analytics."
- 17 23. Two days later, on September 8, 2023, I executed my initial *Rehabilitation Plan* (VA Form
18 28-10214), also known as an Individualized Written Rehabilitation Plan (IWRP), which
19 defined the official program goal as: "To obtain and/or maintain suitable employment in the
20 occupational goal of a Computer Security Specialists, Information Security Analysts,
21 Analytics or closely related field, DOT #033, Computer Systems Technical Support."
- 22 24. Both documents were submitted to my assigned VBA Counselor, a full-time employee of the
23 VBA, who also holds concurrent private-sector employment, raising significant concerns about
24
25
26
27
28

1 divided attention and the procedural disorganization that has characterized the handling of my
2 case.

3 25. The initial Rehabilitation Plan, documented on VA Form 28-10214 (hereinafter referred to as
4 the IWRP), identified one program goal, as defined in paragraph 23 of this affidavit, and three
5 (3) associated objectives.
6

7 26. On September 11, 2023, the VBA Counselor confirmed my program start date with
8 Northeastern University, thereby finalizing the administrative process for high-cost program
9 approval.
10

11 27. These facts establish that the responsibility for developing and drafting the high-cost
12 justification memorandum ultimately fell to me, rather than the VBA Counselor, despite it
13 being her duty. I completed this step to ensure compliance and the timely progression of my
14 approved IWRP.

15 28. I officially began coursework in the Master of Professional Studies in Analytics program at
16 NU on September 18, 2023.
17

18 29. This marked the formal commencement of my training under the VR&E program following
19 my acceptance, high-cost memo submission, and enrollment coordination with NU staff.

20 30. My participation in the program from that date forward has been continuous and in alignment
21 with the three objectives set forth in my approved rehabilitation plan.
22

23 31. However, on May 7, 2024, at 9:50 AM, I submitted a formal request by email to the VBA
24 Counselor, to revise my IWRP.

25 32. This request was based on the documented misalignment between my graduate training in data
26 analytics and the existing occupational classification listed in the IWRP.
27
28

33. Over the course of multiple emails exchanged on May 8, 2024, I reiterated my request and proposed updating the DOT code to better reflect the occupational scope and skills associated with my Master of Professional Studies in Analytics.

34. After negotiation and discussion regarding acceptable classification systems, the VBA Counselor ultimately proposed using DOT code 030 (Occupations in Systems Analysis and Programming), which I accepted.

35. On May 14, 2024, at 8:35 AM, the VBA Counselor issued the revised IWRP, which I signed and returned on May 16, 2024.

36. On May 23, 2024, the VBA Counselor finalized the process by providing me with a countersigned copy of the updated IWRP, dated May 22, 2024.

37. The VBA Counselor also issued a new VR-67 letter formally notifying me of the approved plan, pursuant to 38 U.S.C. § 3104 and 38 C.F.R. §§ 21.72 and 21.294.

38. These actions collectively reflect a fully executed revision of my IWRP, becoming the governing document authorized by the VBA Counselor and confirmed through official documentation.

39. The revised IWRP, dated May 22, 2024, identified one program goal: “To obtain and/or maintain *suitable employment* in the occupational goal of a Computer Security Specialists, Information Security Analysts, Analytics or closely related field, DOT #030, Systems Analysis and Programming.”

40. The revised IWRP also identified and three (3) objectives: (1) to complete a graduate program in the Master of Professional Studies in Analytics at NU; (2) to continue with a prescribed medical and mental health treatment plan through the VA Medical Center; and (3) to complete

1 a cover letter, resume, and employment applications, including monthly job logs, as part of
2 participation in employment adjustment services.

3 41. The revised IWRP dated May 22, 2024, contains only three (3) completed objectives as
4 outlined in the preceding paragraph, with objectives 4 through 10 (sections 12-18) remaining
5 entirely blank with no services, duration, facilities, contacts, or evaluation criteria specified.
6

7 42. This documentation serves as official verification that the rehabilitation plan, as mutually
8 agreed upon and executed by both parties, was intentionally limited to these three objectives.
9

10 43. Any subsequent additions, modifications, or completion of objectives 4-10 that may appear in
11 future versions of this document would constitute unauthorized alterations made without my
12 knowledge, consent, or participation in the plan development process, contrary to the
13 requirements of 38 U.S.C. § 3104 and 38 C.F.R. § 21.72 regarding veteran involvement in
14 rehabilitation plan creation and modification.
15

16 44. This paragraph clearly establishes the record that the blank sections were intentional and
17 creates a clear boundary for what was actually agreed upon versus any potential future
18 unauthorized changes.

19 45. The IWRP distinguishes between objectives (specific tasks) and the vocational goal (desired
20 employment outcome). These are separate and distinct elements of the IWRP.
21

22 **Procedural Deficiencies and Disclosure Failures by VBA**

23 46. On December 2, 2024, in anticipation of my upcoming graduation and in an effort to be
24 proactive, I emailed the VBA Counselor to request guidance on formally closing out my case
25 and to ask what kinds of services were available under the program for individuals pursuing
26 self-employment.
27
28

1 47. At the time, I had applied for graduation from NU and, in good faith, believed that self-
2 employment was a lawful and suitable outcome under my existing IWRP.

3 48. This belief was based on the broad language of the IWRP's stated goal: to obtain and/or
4 maintain suitable employment in fields such as analytics, computer security, or information
5 systems, and on the fact that no documentation I signed ever prohibited or limited self-
6 employment as a vocational option, nor did it restrict pursuing multiple avenues of
7 employment simultaneously.
8

9 49. Moreover, at that time, I had not been informed that "suitable employment" was a defined term
10 under federal regulation, nor had the VBA Counselor ever disclosed that self-employment was
11 a distinct track requiring separate approval.
12

13 50. Therefore, my inquiry was thus made with the reasonable expectation that the VBA supported
14 multiple employment pathways consistent with the plan goal and the spirit of veteran autonomy.
15

16 51. On December 4, 2024, the VBA Counselor responded, and in her reply, she acknowledged that
17 self-employment had not been discussed during the development of my rehabilitation plan and
18 confirmed that it was not the designated track of services selected.

19 52. She further stated that I had been placed in the Employment through Long-Term Services track,
20 which focuses on extended education and placement support. However, this term had never
21 been discussed with me or defined in any way, leaving me with no understanding of its
22 conditions. Moreover, it does not appear anywhere in my governing IWRP.
23

24 53. While she provided references to general resources outside the VR&E program (e.g., Boots to
25 Business, the Small Business Administration), she offered no explanation as to why self-
26 employment had not been disclosed as an option for me during any phase of the intake,
27 formulation, or plan-signing process, nor did she cite any regulation or written policy stating
28

1 that self-employment was unavailable or prohibited to veterans in my track, let alone
2 prohibited from pursuing simultaneously with other tracks.

3 54. This response confirmed for the first time that a critical vocational path had been excluded
4 without my knowledge and without opportunity for informed consideration, even though no
5 signed documentation indicated such a restriction.
6

7 **Failure to Disclose Self-Employment as a Viable Path and Retroactive Justification of**
8 **Undefined Track Designation**

9 55. On December 8, 2024, I wrote to the VBA Counselor to express my concern regarding the
10 recent discovery that self-employment was not supported under my current rehabilitation track.
11 I clarified that at no point during intake, plan formulation, or orientation had self-employment
12 ever been disclosed to me as a potential vocational option.
13

14 56. This omission is especially significant because the VBA Counselor had stated I had been
15 placed under the “Employment Through Long Term Services” track, an internal designation
16 which, to this day, remains undefined in any published VA regulation or guidance, nor was
17 this track listed on my IWRP; therefore, how could one understand the terms and conditions
18 of this track if not defined.
19

20 57. In my response to the VBA Counselor, I questioned why the VBA would not support a
21 perspective that would accept me pursuing multiple types of employment in my rehabilitation
22 plan to reflect those aspirations, especially since I had already formed a business as well as the
23 fact that my studies and coursework aligned with entrepreneurial activities to support it.
24

25 58. I further asked whether any regulation or law expressly barred this perspective; the VBA
26 Counselor provided no regulatory citation, instead suggesting only that other resources existed
27 outside of VR&E.
28

1 59. When I followed up with a direct ethical question on December 9, asking whether I was now
2 expected to prioritize the VBA's institutional goals over my own, I received no substantive
3 answer.

4
5 60. This sequence of events reflects not only a lack of transparency but also a failure of fiduciary
6 responsibility on the part of the VBA Counselor to provide the information necessary for
7 informed decision-making, as well as her failure to disclose or define the conditions of terms
8 she unilaterally introduced after I had already begun participation in the VR&E programs,
9 terms such as "Employment Through Long-Term Services," which is not found in my IWRP.

10
11 61. These omissions materially impaired my ability to establish an appropriate rehabilitation path
12 from the outset of my participation in the VR&E program.

13 62. On December 15, 2024, I formally notified the VBA Counselor that I intended to move forward
14 with self-employment through the company I founded, Safe Passage Strategies, LLC, which is
15 legally registered and aligned with my vocational rehabilitation goal of Systems Analysis and
16 Programming.

17
18 63. In that email, I clearly stated my expectation that any actions taken by the VA in response to
19 my decision would comply with constitutional due process protections, and I requested citation
20 to any law, regulation, or code under which my pursuit of self-employment might be deemed
21 impermissible.

22
23 64. I further noted that the self-employment option had never been disclosed to me at the outset of
24 my participation in the VR&E program and argued that such a material omission violated
25 standards of transparency comparable to those required of private sector entities under laws
26 such as the Truth in Lending Act and the Fair Credit Reporting Act.

1 65. I emphasized that veterans should not be held to lower disclosure standards than consumers
2 and called on the VBA Counselor to provide written confirmation if it did not consider itself
3 bound by such principles.
4

5 66. This message reflected a growing concern about the nature of my working relationship with
6 the VBA Counselor, which I had come to perceive as adversarial rather than supportive.

7 67. On December 30, 2024, the VBA Counselor responded by issuing a formal request for a list
8 of extensive documentation to support a shift to a self-employment track, including a business
9 plan, details of my vocational aptitudes and experience, financial disclosures, and submission
10 of Appendix G.
11

12 68. This was the first time such requirements were disclosed to me, and they were provided only
13 after I had independently declared my intent to pursue self-employment.

14 69. The correspondence also cited sections from the VA's internal policy manual, M28C, and
15 clarified that only startup businesses could be supported, not existing businesses.
16

17 70. I replied the same day with a comprehensive submission including a redacted business plan,
18 completed Appendix G, and supporting documentation, while also raising concerns about
19 procedural fairness and requesting neutral oversight.

20 71. In that message, I raised 5 U.S.C. § 706(2)(A) of the Administrative Procedure Act, which
21 prohibits agency actions that are arbitrary, capricious, or not in accordance with law.
22

23 72. I argued that the VA's failure to disclose self-employment as a viable track at the beginning of
24 my program participation had undermined my ability to make an informed decision and may
25 constitute a violation of this standard.

26 73. I cited case law, including *Henderson v. Shinseki*, *Gilbert v. Derwinski*, and *Cook v. Principi*,
27 in support of the VA's duty to resolve ambiguities in the veteran's favor and requested that all
28

1 future documentation requests include the specific legal authority under which they were being
2 made.

3 74. I further sought confirmation that my proprietary business information would be treated with
4 appropriate confidentiality and requested that the adjudication of my case be subject to neutral
5 oversight.
6

7 75. These actions were taken not as a challenge to the intent of the VR&E program, but rather to
8 preserve the integrity of the adjudicatory process and to re-establish a relationship of trust and
9 transparency that had been eroded by material nondisclosure at the outset of my plan, as well
10 as to protect my business trade secrets from government overreach.
11

12 76. It was at this time that I contacted the VBA Counselor's supervisor, Mr. Corey McCoy, to
13 ensure that my concerns regarding transparency, due process, and program integrity were
14 appropriately elevated within the VR&E *program*.
15

16 77. On January 8, 2025, in response to my formal request for clarification regarding self-
17 employment support under the VR&E program, Mr. Corey McCoy issued a reply that was both
18 procedurally vague and legally deficient.

19 78. Mr. Corey McCoy's justification relied on generic references to orientation materials but failed
20 to provide any evidence that the self-employment track was explicitly disclosed to me during
21 plan development, nor could he produce any signed acknowledgment confirming that this
22 vocational path had been presented.
23

24 79. Instead, he relied on post hoc assumptions drawn from my initial submission of a labor market
25 proposal, which I prepared without knowing that self-employment was even a separate track.
26
27
28

1 80. Mr. Corey McCoy's response further introduced an unsupported definition of "existing
2 business" that lacks grounding in the Code of Federal Regulations and appears to be internally
3 fabricated.

4
5 81. He failed to cite any controlling authority for the distinction yet used it to suggest that my
6 legally registered and actively developed startup fell outside the scope of eligible VR&E
7 support.

8 82. My rebuttal the same day explicitly challenged this reasoning, demanded evidence of prior
9 disclosure, and pointed out that the VA had already approved and funded my participation in
10 a capstone course (ALY6980) at NU centered entirely on developing the very startup now
11 being denied support.
12

13 83. I emphasized that while the VA may claim to support veteran entrepreneurship, it cannot do
14 so logically, legally, or in good faith while simultaneously erecting opaque barriers based on
15 undefined terms and unstated criteria.
16

17 84. This contradiction exposes the VR&E program's failure to meet its statutory obligations under
18 38 C.F.R. §§ 21.70 and 21.73, both of which require individualized service alignment and
19 prohibit arbitrary denial of services based on internal preferences or bureaucratic convenience.
20

21 **Institutional Inflexibility**

22 85. On January 14, 2025, Supervisory Counselor Corey McCoy stated that I had neither been
23 approved nor denied for self-employment, and that a determination would only be made if I
24 completed additional steps under the internal VA M28C procedural framework, not legal
25 framework.
26

27 86. However, he simultaneously presented a coercive alternative, namely, to accept an immediate
28 denial via VA Form 28-8872 and appellate rights under Form 20-0998, despite the fact that no

1 formal proposal, definition of “startup,” or individualized accommodation had been extended
2 to me under the law.

3 87. In my January 16, 2025, reply, I explicitly stated that I have been under federal investigation
4 since 2023, a fact that has rendered me ineligible for federal employment and has created a
5 reputational spillover affecting my ability to secure private sector opportunities at that time.
6

7 88. I clarified that this investigation, which the VBA itself has used to declare me unsuitable for
8 federal work.

9 89. In that same email, dated January 16, 2025, I further emphasized that I would remain on the
10 path I am currently on, which was IWRP, dated May 22, 2024, despite her not realizing that
11 my IWRP did not ban me from seeking multiple avenues of suitable employment, including
12 self-employment.
13

14 90. Despite the gravity and time-sensitive nature of my January 16, 2025, email, wherein I formally
15 disclosed the ongoing federal investigation that had rendered me unsuitable for federal
16 employment and was causing employability issues in the private sector, the VBA Counselor
17 failed to respond in any timely or meaningful manner.
18

19 91. Nearly two months later, on March 12, 2025, she casually acknowledged the message, stating,
20 “I just found it in reviewing older emails,” and offered to “discuss this at my upcoming
21 meeting,” without addressing the substance or urgency of the matter.
22

23 92. Her failure to acknowledge or process this critical context in real time, despite its direct bearing
24 on plan feasibility and closure status, constitutes procedural abandonment and undermines any
25 subsequent claim by the VBA that it acted with individualized care or timely attention.

26 93. At a minimum, this conduct reflects administrative indifference; at worst, it suggests
27 institutional bad faith in violation of 38 C.F.R. §§ 21.70 and 21.73.
28

1 94. Regardless of the growing mistrust I developed toward the VR&E program, and its players, it
2 became increasingly clear through my direct experience that neither the assigned Counselor
3 nor her supervisor viewed their role as one of genuine support, as the VBA's mission proclaims.
4

5 95. Instead, their conduct reflected a pattern of obstruction, withholding critical disclosures, and
6 procedural maneuvering designed less to empower veterans than to constrain them within
7 inflexible frameworks.

8 96. This environment fostered not rehabilitation but entrapment, placing me in predicaments from
9 which any deviation or self-advocacy was met with additional scrutiny or implied
10 disqualification.
11

12 97. At no point did I observe conduct consistent with a good-faith effort to adapt services to my
13 circumstances or to act in accordance with the individualized care required under 38 C.F.R. §§
14 21.70 and 21.73.

15 98. Rather, the actions and inactions of the assigned officials suggest that the VR&E system, in
16 practice, operated not as a pathway to veteran empowerment but as a gatekeeping apparatus
17 indifferent to the realities faced by those it was designed to serve.
18

19 99. Nevertheless, I pushed forward through the barriers they imposed, advancing steadily through
20 my coursework, capstone, and related milestones.

21 100. My determination to complete the program was not due to institutional support, but in spite
22 of its absence.
23

24 101. I relied on my own integrity, discipline, and moral compass to progress through the
25 program and achieve the goals outlined in my IWRP, culminating in successful graduation.
26

27 **Graduation and Fulfillment of Program Objectives 1, and 2**

28 102. I finished the program in March 2025, at NU, Master of Professional Studies in Analytics.

103. As a result, I had completed two of the three objectives outlined in my governing IWRP.

Specifically, I fulfilled:

- Objective 1, which required completion of the graduate program, and
- Objective 2, which required adherence to my prescribed healthcare and mental health treatment plan.

104. On April 1, 2025, I formally notified the assigned VBA Counselor via email of my completion of the two objectives and provided my unofficial transcript, which reflected a cumulative GPA of 3.86, exceeding the plan's required minimum GPA of 2.50.

105. In that same email, I also confirmed my advancement to Objective Three of my IWRP, for active participation in employment services, and expressed an expectation of receiving two months of Employment Adjustment Allowance (EAA).

106. I further disclosed, in that email, I was employed as the Founder and CEO of Safe Passage Strategies, LLC, and that I had attached my first round of documented evidence of job-seeking *and* entrepreneurial engagement which reveals my active status in *both* employment tracks aligned with my IWRP as well as entrepreneurial development.

107. My statement about being "Founder and CEO" does *not* mean I abandoned the employment track; rather, I pursued both avenues in parallel.

108. Nothing in federal law or regulation prevents a veteran from pursuing multiple avenues of suitable employment simultaneously.

- The VBA Counselor herself holds two concurrent positions, one within the public sector and another in private-sector employment; therefore, for her not to recognize that a veteran can similarly pursue two parallel avenues of suitable employment

1 either reflects a deliberate double standard or a fundamental failure of judgment
2 inconsistent with the principles of vocational rehabilitation.

3
4 109. My April 1, 2025, email was a formal notice of graduate program completion at NU and a
5 transparent submission of documentation reflecting *both* job-seeking and entrepreneurial
6 engagement, as explicitly stated in the body of that message.

7 110. Likewise, in my January 16, 2025, email, despite later efforts by the VBA Counselor to
8 mischaracterize this message as evidence of a deviation from my IWRP, I explicitly reaffirmed
9 my continued adherence to the vocational path originally established and approved by the
10 Counselor on May 22, 2024.

- 11
- 12 • **NOTE:** At no point did I deviate from the objectives or vocational direction set
13 forth in the plan. Any suggestion to the contrary, including those later used to justify
14 the proposed closure is discussed in this affidavit under the section titled “The July
15 15, 2025, Closure Letter – The Formal Letter,” is factually and procedurally
16 unfounded.
- 17

18 111. Again, there is no regulation that precludes a veteran from pursuing multiple employment
19 avenues simultaneously, and nothing in my IWRP forbade such an approach, either.

20 112. At no point did the VBA Counselor ask any clarifying questions regarding the nature or
21 intent of my employment activities.

22
23 113. The Counselor’s failure to inquire into or substantiate the information I voluntarily
24 disclosed cannot serve as a basis for any retroactive mischaracterization of my intentions.

25 114. My path remained aligned with the objectives and goal outlined in my IWRP, and my
26 continued transparency of the record with the VBA reflects that alignment.

1 115. On April 1, 2025, 5:24PM following my formal notice of graduation and documentation
2 of *both* job-seeking and entrepreneurial engagement, the VBA Counselor responded by
3 congratulating me but declined to acknowledge my submission as sufficient to determine me
4 “Job Ready.”
5

6 116. Instead, she insisted that a “conferred transcript” was necessary before proceeding with
7 EAA determinations and introduced two divergent options:

- 8 i. either continue through traditional employment services or
 - 9 ii. interrupt my case to pursue self-employment support.
- 10

11 117. This bifurcation, presented without acknowledgement of the dual-track approach I had
12 transparently disclosed in the very same correspondence, disregarded the record, my reality
13 and the reality that veterans may, and often must, pursue multiple avenues of employment
14 concurrently.

15 118. In response that same day, I requested written clarification on several unresolved
16 procedural points, including the undefined standards for “satisfactory participation” in
17 employment services and the absence of any regulatory basis for withholding EAA based on
18 undefined or subjective criteria.
19

20 119. In my inquiry, I emphasized that I had, to date, fulfilled Objectives 1 and 2 of my IWRP,
21 and that it was both appropriate and necessary to jointly establish clear and transparent criteria
22 for what constitutes “satisfactory participation,” particularly given the absence of any formal
23 definition of the term.
24

25 120. The lack of such standards around “satisfactory participation” rendered the plan
26 discretionary and arbitrary in execution, undermining its stated purpose to support veterans
27 through rehabilitation once again.
28

121. On April 7, 2025, at 10:53 AM, the VBA Counselor responded to my prior request for regulatory clarity with a vague reference to a “chapter” from the VR&E Policy Manual but failed to include any functional link, citation, or page number.

122. Her response lacked all necessary elements of meaningful guidance and amounted to a procedural deflection.

123. At 11:55 AM, I replied and formally objected to this omission and reiterated my request for specific citations to regulatory or policy authority around the satisfactory participation term.

124. I emphasized that support must be measurable and that referring me to an undefined manual, without any directional context, was unprofessional and dismissive.

125. I further clarified that no legal or regulatory framework cited to date justified the withholding of EAA when no performance metrics around the term, satisfactory participation, were incorporated into the signed IWRP. I concluded by requesting direct responses to four core questions:

- (1) the official start date of employment services,
- (2) a regulatory and policy-based definition of “satisfactory participation,”
- (3) the legal authority for withholding EAA absent plan standards, and
- (4) a binary statement on whether I would receive the EAA payments outlined in Objective Three.

126. On April 14, 2025, at 3:12 PM, the assigned VBA Counselor issued a written response citing excerpts from the M28C Manual and 38 U.S.C. §§ 3104 and 3108, asserting that my misunderstandings arose from miscommunication.

- **NOTE:** The citation the Counselor provided does not define the term “satisfactory participation.” In fact, no regulations do. Furthermore, the M28C Manual also fails

1 to define the term. Instead, it relies on general guidance related to conduct,
2 cooperation, and progress, leaving the determination largely to the discretion of
3 individual case managers, without clear, consistent, or enforceable criteria. This
4 lack of definition creates ambiguity and opens the door to arbitrary or inconsistent
5 application, undermining due process and informed participation by veterans.
6

7 127. The characterization of this matter as a mere “miscommunication” by the VBA Counselor
8 is inaccurate and misleading. The core issue stems from her failure to adhere to applicable
9 regulations and to provide direct, clear, and legally grounded responses to my explicit inquiries.
10

11 128. This lack of regulatory compliance and transparency cannot be excused as a simple
12 misunderstanding.

13 129. Instead, it represents a substantive procedural deficiency that has materially impaired my
14 ability to fully understand and participate in the VR&E program.

15 130. Therefore, it is necessary for the record to reflect that the problem is systemic and
16 intentional noncompliance by the VBA Counselor rather than incidental miscommunication.
17

18 131. Despite citing various sections, her message failed to provide a direct answer to my original,
19 legally framed questions and failed to reconcile her own prior omissions.

20 132. Specifically, she cited M28C.V.B.9. b., which states that a *Job Ready* declaration requires
21 documentation of program completion, a resume, a signed Individualized Employment
22 Assistance Plan (IEAP), and licensure if applicable.
23

24 133. However, at that point, I had already submitted a completed resume, fulfilled all plan
25 objectives to date (including academic completion under extraordinary hardship), disclosed no
26 requirement for licensure under my vocational goal, and stated we had never developed an
27 IEAP.
28

1 134. Moreover, she invoked 38 CFR § 21.47 to assert that employment services begin only after
2 a Job Ready determination, while failing to acknowledge that her inaction had delayed that
3 very declaration despite my proactive submission of all required documentation.

4
5 135. Further the term “satisfactory participation” was mentioned again without defining its
6 standards and lacked any numeric benchmarks.

7 136. Lastly, she implied that denial of EAA would follow if certain “satisfactory participation”
8 standards were not met, while simultaneously refusing to clarify what those standards were,
9 thereby creating a Kafkaesque loop in which compliance is demanded but never defined.

10
11 137. Her citation to policy, in this context, amounted to post hoc justification for procedural
12 failures that were her own.

13 138. On April 15, 2025, at 9:21 AM, I formally responded to the VBA Counselor’s April 14,
14 2025, message with a comprehensive written record rejecting her claim that the matter
15 involved “miscommunication.”

16
17 139. I asserted that the true issue was the structurally deceptive and procedurally vague nature
18 of the IWRP I had been forced to sign to receive services, which again, only listed three (3)
19 objectives and one (1) goal.

20 140. I documented that the plan lacked measurable criteria for what constitutes “satisfactory
21 participation,” under Objective 3, defined timelines, and any indication that additional federal
22 regulations or internal manuals would later be imposed as conditions for EAA eligibility.

23
24 141. I further noted the absence of individualized case management, including an eight-week
25 gap in communication following my January 16, 2025, disclosure of extenuating circumstances.

26 142. In that same message, I reiterated that my pursuit of both the employment track and self-
27 employment remained ongoing, as the record clearly reflected my engagement in parallel
28

1 employment path regardless of whether the Counselor fully understood this, implicitly
2 overlooked it, or both.

3 143. I formally requested clear, written standards and deadlines regarding my Job Ready
4 determination and EAA eligibility. Additionally, I informed the Counselor that, moving
5 forward, all communications would be documented in writing or recorded in the presence of
6 professional witnesses to preserve an accurate record and ensure procedural integrity,
7 particularly in light of previous instances where my communications were either
8 misunderstood or disregarded.
9

10 144. My April 15, 2025, **9:21 AM** email was a formal and impassioned rebuttal to systemic
11 mishandling, authored by a legally literate, trauma-aware individual demanding procedural
12 transparency and equitable treatment in a government benefits process.
13

14 145. My email was a strategic document, not a distress signal.
15

16 **Formal Submission of Degree Conferral & Request for Job Ready Determination**

17 146. On April 15, 2025, at **11:28 AM**, I submitted my official transcript from NU to the VBA
18 Counselor, confirming that my Master of Professional Studies in Analytics had been formally
19 conferred.
20

21 147. This transcript satisfied the exact requirement previously stated by the Counselor for
22 determining my Job Ready status.

23 148. In the accompanying message, I noted the extraordinary conditions under which this
24 academic achievement was completed, including the ongoing federal investigation and the
25 absence of meaningful support or clarity within the VR&E process.
26
27
28

1 149. I explicitly requested that the submitted transcript serve as the final documentation required
2 to move forward with the Job Ready determination and the disbursement of Employment
3 Adjustment Allowance (EAA) as outlined in Objective three (3) of my signed plan.
4

5 150. I also requested confirmation of receipt and a clear, timely outline of any further steps or
6 requirements.

7 151. No such outline or confirmation was provided.

8 **Psychological Reframing & Weaponization of “Satisfactory Participation”**

9 152. Instead of honoring my April 15, 2025, **11:28 AM** email requesting a *Job Ready*
10 determination and EAA disbursement, based on my formal transcript submission and
11 fulfillment of Objectives One and Two of my IWRP, the VBA Counselor decided to ignore it
12 and respond to my April 15, 2025, **9:21 AM** email, as if that email contained any indication
13 that I was in a mental health crisis.
14

- 15 • Her response was ten days later, on April 25, 2025, at 7:26 AM:

16 i. VBA Counselor’s Recharacterization of my April 15, 2025, **9:21 AM**
17 email:
18

- 19 1. Misinterpreted my email as evidence of clinical instability or
20 emotional crisis.
- 21 2. Offered to interrupt services and referred to potential psychiatric
22 support, as though I had signaled an inability to continue.
- 23 3. Framed the situation as one requiring trauma reduction, shifting
24 focus away from procedural obligations.
- 25 4. Proposed a new binary pathway:
26 a. Either pause for mental health reasons; or
27
28

- 1 b. Accept newly defined terms for Job Ready status, including
2 a 50-job-per-month quota and mandatory legal interview
3 training around my whistle blower case, neither existed in
4 the governing IWRP.

6 **ii. Actual Intent of My Email:**

- 7 1. Asserted the need for procedural clarity and transparency and jointly
8 agreed-upon evaluation standards.
9 2. Challenged the legitimacy of vague, undefined criteria imposed post
10 hoc and demanded administrative accountability.
11 3. Emphasized that my forward path of developing an IEAP was
12 dictated by necessity, not preference.
13 4. Requested that determinations be made based on existing evidence
14 of completed objectives, not new, improvised conditions divorced
15 from the original IWRP and not jointly agreed upon.

18 **iii. Tactical Evasion of Administrative Duty:**

- 19 1. The Counselor's psychological reframing of my 9:21 AM email
20 served to deflect from her obligation to issue a timely and good-faith
21 determination under the existing terms of the IWRP. Rather than
22 evaluating the transcript and documented completion of Objectives
23 One and Two, which would trigger consideration of Job Ready
24 status, she instead constructed an alternate narrative of clinical
25 impairment.

1 a. This maneuver operated as a procedural sidestep, effectively
2 delaying adjudication and circumventing the administrative
3 duty to assess my eligibility based on objective and
4 completed milestones.
5

6 2. By replacing defined IWRP objectives with retroactively imposed
7 criteria (i.e., 50 job applications per month and mandatory legal
8 training around my whistleblower case), without formal amendment
9 or veteran consent, the Counselor violated the regulatory principle
10 that rehabilitation plans are mutually developed and jointly executed
11 under 38 C.F.R. §§ 21.92 and 21.94.
12

13 a. Her conduct substituted discretion for due process and
14 unilaterally redefined the conditions of participation, an
15 action incompatible with established regulatory safeguards
16 and the Department's fiduciary duty to act in the veteran's
17 best interest.
18

19 b. This maneuver marked a significant escalation in the
20 Counselor's pattern of deflection and control. Rather than
21 acknowledging that I had fulfilled the criteria for
22 advancement to Job Ready status under Objective Three of
23 my rehabilitation plan, she reframed the situation as a matter
24 of emotional instability or incomplete compliance. Her
25 message implied that my concerns were trauma-induced
26 rather than procedurally grounded, and she leveraged the
27
28

1 language of care to justify a bifurcated path, either
2 psychiatric redirection or intensified behavioral oversight.
3 By doing so, she mischaracterized my 9:21AM
4 correspondence as a signal of psychological distress rather
5 than a legitimate procedural appeal, thus beginning a pattern
6 of psychological reframing and institutional gaslighting
7 aimed at diverting attention from her prior omissions and
8 failure to follow regulation.
9

10
11 153. Again, on April 25, 2025, at 7:26 AM, the VBA Counselor introduced a new procedural
12 detour, despite the absence of any such request or indication on my part; reframed my legal
13 and procedural requests in my April 15, 2025, at **9:21 AM** email as either a mental health crisis
14 or a need for intensified compliance conditioning.

15
16 154. Neither of these binary options had been requested, implied, or supported by any prior
17 correspondence or regulatory foundation. Specifically, she stated:

- 18 • **Option 1- Pause for Mental Health Intervention:** That I could elect to “interrupt”
19 my case if I felt the need to focus on my mental health, during which time she could
20 issue referrals for counseling and psychiatric services.

- 21 i. This option introduced an unsolicited psychological interpretation of my
22 April 15, 2025, at **9:21 AM** email, despite no prior request or indication on
23 my part that such a pause was needed or desired.

- 24
25 • **Option 2 - Conditional Job Ready Status:** That I could be moved to Job Ready
26 status *only* if I agreed to her newly invented performance metrics, such as applying
27 to 50 jobs per month, completing interview prep around my whistleblower case.
28

1 and submitting monthly job logs, as prerequisites for receiving the Employment
2 Adjustment Allowance (EAA). These benchmarks were not grounded in any prior
3 discussion, regulatory citation, or objectives within the signed IWRP, and were
4 introduced without proper authority or my consent.
5

6 155. She conditioned both Job Ready status and EAA eligibility on these unilaterally invented
7 metrics, despite prior acknowledgment that each veteran's situation is unique and that such
8 standards must be grounded in joint individualized planning.
9

10 156. The VBA Counselor did not cite any legal authority to justify imposing these new
11 requirements, which were not part of my signed IWRP:

- 12 • Instead, she relied on her own misinterpretations and recharacterizations of my past
13 emails, claiming those exchanges had already informed me of policy requirements.
14 This contradicted my prior, explicit requests for official citations and transparent,
15 written criteria.
16

17 157. Despite 38 C.F.R. § 21.268(a) clearly establishing that EAA eligibility is based solely on
18 completion of a period of rehabilitation and attainment of employability, the VBA Counselor
19 unlawfully conditioned EAA payment on the submission of monthly job logs, an extralegal
20 requirement not found anywhere in the governing regulation.
21

22 158. Her imposition of these criteria contradicts the *intent* behind 38 C.F.R. § 21.268 and
23 introduces obligations that were neither disclosed in my signed IWRP nor supported by the
24 controlling federal code.
25
26
27
28

Another Attempt to Request Joint Development of IEAP

159. On April 28, 2025, at 5:17 AM, I submitted a legally grounded response to the VBA Counselor's April 25 proposal, formally rejecting both options she presented as inconsistent with the rehabilitative purpose of the VR&E program and the terms of my signed IWRP:

- In that response, I cited 38 C.F.R. §§ 21.88 and 21.92 to assert that the next appropriate step was the joint development of an Individualized Employment Assistance Plan (IEAP), on the grounds that:

- i. I did not agree with the new objectives she introduced, which were based on her mischaracterization and misinterpretation of my prior emails; and
- ii. Her unilateral definition of "satisfactory participation" lacked legal grounding and was not included in the governing IWRP.

1. This conduct reflects a trauma-informed approach to systemic resistance: maintaining composure, honoring the structure of the law, and refusing to internalize coercive procedural overreach. Far from acting in bad faith, my actions were a clear demonstration of somatic integrity, refusing to compromise lawful principles under pressure, and instead insisting on collaborative, rights-based decision-making even in the face of administrative hostility.

160. On April 29, 2025, at 1:26 PM, the VBA Counselor responded to my April 28 request for confirmation of the required joint development of an IEAP, as mandated by 38 C.F.R. §§ 21.88 and 21.92, by asking: "What are your concerns? What are you proposing to add to your current IWRP?"

- Her response reflects not only a fundamental misunderstanding of the VR&E program’s post-training requirements, specifically, the mandate under 38 C.F.R. §§ 21.88 and 21.92 to jointly develop an IEAP when new objectives are introduced, particularly when those objectives are not mutually agreed upon, such as her redefinition of “satisfactory participation,” but also a dismissive and obstructive posture:

- i. By shifting the burden onto me to justify concerns or propose revisions, rather than acknowledging her legal obligation to engage in a collaborative planning process, she failed to recognize or respect the statutory framework governing this phase of the program:

1. This conduct reflects a breakdown in regulatory adherence wherein the assigned case manager demands veteran compliance while disregarding her own obligations under controlling law.
2. Such inconsistency renders any adverse determinations arbitrary and contrary to 5 U.S.C. § 706(2)(A).

Refusal to Engage in Required Joint Planning for Satisfactory Participation Objectives

161. On April 30, 2025, at 12:26 PM, I submitted a formal written response to the VBA Counselor’s inquiry, affirming my willingness to engage in the lawful development of an IEAP pursuant to 38 C.F.R. §§ 21.88 and 21.92:

- I clarified that no IEAP had been jointly created, and I challenged the imposition of arbitrary conditions such as a “50 job applications per month” quota and referrals to unqualified third parties for legal assistance regarding my whistle blower case,

1 that were neither authorized by regulation, reflected in the signed IWRP, nor
2 mutually agreed upon:

3 i. This portrays a reasonable, proactive, and compliance-minded approach,
4 undermining any claim that I was uncooperative or resistant. These
5 communications demonstrate my consistent good-faith effort to comply
6 with the VR&E program's legal framework while asserting my right to a
7 collaborative planning process.
8

- 9 • By formally reaffirming my willingness to engage in the joint development of an
10 IEAP, as required under the federal regulations, I underscored both my readiness
11 to participate and the Counselor's obligation to follow due process;
12
- 13 • I also reiterated that my April 15, 2025, **11:28** request for Job Ready status,
14 submitted with my official transcript, had gone unacknowledged, and I requested
15 that the proper procedural step: joint development of an IEAP, be initiated;
16

17 162. The VBA Counselor never responded to this email.

18 163. Therefore, seven days later, on May 7, 2025, at 5:37 AM, I emailed the VBA to follow up
19 on my unanswered April 30, 2025, correspondence regarding the pending "Job Ready"
20 determination:

- 21 • I restated that my April 15, 2025, **11:28AM** submission of my official transcript
22 and explicit request to proceed had gone unacknowledged for 22 days;
23
- 24 • I reattached the April 30 message for the record and requested written clarification
25 on the reason for the continued delay;
26
- 27 • I raised concerns that the delay appeared retaliatory and unsupported by regulation
28 and reiterated my readiness to proceed upon lawful determination.

1 164. On May 7, 2025, at 3:47 PM, the VBA Counselor responded, claiming she could not
2 determine me "Job Ready" because I had allegedly requested to *redevelop* my IEAP without
3 providing specifics.

4
5 165. This response misrepresents the record.

6 **Misrepresentation of the Record by VBA Counselor**

7 166. At no point did I request IEAP *redevelopment*.

8 167. Instead, I requested the joint development of an IEAP, as an IEAP was never created from
9 the onset.

10
11 168. In fact, on April 29, 2025, the VBA Counselor explicitly referred to my plan as an "IWRP,"
12 confirming its classification under 38 C.F.R. § 21.86.

13 169. Yet, in her May 7, 2025, response, she abruptly recharacterized my plan as an "IEAP,"
14 apparently to shift the regulatory framing and justify her refusal to determine me *Job Ready*.
15 This retroactive reframing occurred without any signed plan revision and directly contradicts
16 38 C.F.R. § 21.92.

17
18 170. This inconsistent and retroactive reframing of the record, absent any signed plan revision,
19 violates 38 C.F.R. § 21.92 and reflects intentional misrepresentation, not administrative
20 confusion.

- 21 • The action appears calculated to obstruct my advancement through the program and
22 constitutes a breach of regulatory duty and good faith.
- 23
24 • By deliberately mischaracterizing my signed IWRP plan and invoking regulatory
25 terms that did not apply, the VBA Counselor ceased to function as a neutral
26 administrator of benefits and instead acted as a rogue official.

- i. Her conduct reflects a personal departure from the governing standards of the VR&E program and constitutes misuse of her delegated authority.
- ii. This behavior undermines the core rehabilitative intent of Chapter 31 and raises serious concerns about retaliatory motive, regulatory abuse, and dereliction of duty.
- iii. Her actions were not merely incorrect, they were extralegal, unauthorized, and harmful.

Two Distinct Plans: Individualized Written Rehabilitation Plan & Individualized Employment Assistance Plan

171. To clarify the types of plans, for the record, federal regulations, not VA policy, state an Individualized Written Rehabilitation Plan (IWRP) and Individualized Employment Assistance Plan (IEAP) are two distinct types of plans under two distinct federal regulations.

- It seems the VBA Counselor had adopted a practice of using the terms “IWRP” and “IEAP” interchangeably for administrative convenience.
- This practice directly contradicts the distinct legal definitions and eligibility criteria set forth in 38 C.F.R. §§ 21.86 and 21.88.
 - i. By collapsing these separate regulatory categories into a single hybrid label, the VBA Counselor created ambiguity that can be, and in my case, had been, weaponized to the veteran’s detriment, enabling the VBA Counselor to retroactively apply conditions or deny entitlements inconsistent with the actual services authorized and documented in the signed IWRP.
 - ii. This conflation not only undermined the procedural integrity of the rehabilitation process but also caused material harm by enabling the

Counselor to apply new or post-training “satisfactory participation” requirements without the lawful joint development of an IEAP, resulting in adverse determinations that lacked regulatory foundation, obstructed the Job Ready determination, and later my qualification for case closure under Rehabilitated.

Legal Definitions of IWRP & IEAP

172. According to 38 C.F.R. § 21.86, an IWRP is a written plan developed by a VBA Counselor and the veteran together that specifies the goal, intermediate objectives, and services necessary for the veteran to achieve rehabilitation.

173. According to 38 C.F.R. § 21.88 the IEAP is jointly developed with a VBA Counselor and the veteran who has completed training or who does not need training and is receiving only employment services. In other words, the IEAP outlines services and assistance necessary to obtain or maintain suitable employment.

174. My signed IWRP, dated May 22, 2024, fails to satisfy the legal definition and regulatory criteria of an IEAP because my IWRP includes substantive academic objectives requiring the veteran to complete a graduate program in analytics from September 2023 through May 2025, along with medical treatment and case management obligations extending through May 2026.

175. Therefore, the VBA Counselor’s characterization of my IWRP as an IEAP is not merely legally inaccurate, it constitutes a material misrepresentation of regulatory classifications in violation of federal law:

- This mischaracterization was made despite the plain language of my signed plan, which documents ongoing academic training, medical services, and case management services categorically incompatible with the IEAP framework;

- The counselor’s decision to reframe my plan as an IEAP, absent lawful authority or my informed consent, reflects not an administrative oversight but a calculated act of procedural deceit:
 - i. This conduct violates the VA’s affirmative duties under 38 C.F.R. § 21.92, which requires that changes to a veteran’s plan be made *jointly* and with full transparency;
 - ii. Moreover, it undermines 38 U.S.C. § 5104, which mandates the VA to provide clear, written notice of the legal basis for any adverse decision.
- By substituting policy jargon for statutory clarity, the Counselor obscured the plan’s true legal nature in a manner that obstructed my rights, delayed my progression, and ultimately subverted the rehabilitative purpose of the VR&E program;
- My prior emails to the VBA Counselor, including April 15 (**11:28AM**) and April 30, clearly reflected a request for Job Ready determination and a willingness to jointly develop the IEAP as required by 38 C.F.R. § 21.88, since the VBA Counselor had improperly attempted to impose new, extralegal conditions for “satisfactory participation” as prerequisites for advancement, conditions that were never enumerated in the IWRP dated May 22, 2024, or agree upon by me and therefore lacked any binding force;
- The Counselor’s refusal to acknowledge the April 15 **11:28AM** transcript submission, and her continued insistence on undefined “satisfactory participation” conditions not included in the signed plan, constitutes a procedural mischaracterization and administrative obstruction.

- 1 i. This regulatory mischaracterization was not a benign error, it resulted in
2 material harm by obstructing my transition to employment services,
3 delaying Job Ready classification, imposing unlawful prerequisites, and
4 triggering an artificial case closure dilemma that deprived me of earned
5 benefits and due process protections under federal law.
6

7 176. On May 8, 2025, at 1:15 PM, I formally responded to the VBA Counselor's
8 mischaracterization of my position and clarified that I never requested to redevelop my IEAP,
9 but rather called for its lawful, initial joint development per 38 C.F.R. §§ 21.88 and 21.92.
10

- 11 • I emphasized that my April 15, 2025, transcript submission and request for Job
12 Ready status remained unanswered, and that the Counselor's imposition of
13 retroactive, unlisted conditions, including job quotas and third-party referrals, had
14 no legal basis under our signed IWRP dated May 22, 2024.
15
16 • I reiterated that the governing plan explicitly required submission of job logs, not
17 numeric quotas, and that any deviation from the signed agreement was unlawful
18 without documented mutual consent.
19
20 • I again requested immediate Job Ready determination and affirmed commitment to
21 lawful participation and then stated my own "satisfactory participation" conditions
22 of the submission of 13 monthly applications in alignment with Box 11G and 11H
23 of the signed IWRP.

- 24 i. The VBA Counselor raised no objection to the objectives I proposed for
25 satisfactory participation under Objective Three of my IWRP.
26
27
28

Job Ready Status Determined 24 Days After Transcript Submission

177. On May 9, 2025, at 3:04 PM, the VBA Counselor belatedly determined me Job Ready, 24 days after my original April 15, 2025, **11:28AM** request and transcript submission.

178. Despite this delay, the VBA Counselor imposed a new condition requiring submission of a job log by June 9, 2025, for EAA payment, contradicting 38 C.F.R. § 21.268(a), which bases EAA solely on completion of rehabilitation and reaching employability, not post hoc job log reviews.

179. No justification was provided for the delay or for introducing this additional requirement absent from the signed IWRP.

Submission of 1st Monthly Job Log

180. On June 9, 2025, at 6:14 AM, I submitted my first month job log to the VBA Counselor in accordance with my May 8, 2025, and her May 9, 2025, directive and the signed IWRP dated May 22, 2024.

181. The submission documented 13 job applications, meeting the standard for the first month under Objective Three and Box 11G, and was structured in a clear, professional format across two tabs.

182. On June 11, 2025, at 10:09 AM, the VBA Counselor confirmed via email that my first EAA payment had been authorized and would be issued within 5–7 business days.

Submission of 2nd Monthly Job Log

183. On July 8, 2025, at 8:56 AM, I submitted my second monthly job log one day early to the VBA Counselor, with a total of 26 job applications documented in accordance with the IWRP signed May 22, 2024.

184. This second on-time and compliant submission further underscores my continuous and structured effort toward suitable employment under the terms of the signed plan

Fulfillment of All IWRP Objectives

185. Therefore, on July 8, 2025, I fully satisfied all three intermediate objectives outlined in my signed IWRP:

- Objective One (Box 9): I completed the Master of Professional Studies in Analytics at NU, fulfilling all academic requirements as verified through final transcripts showing a cumulative GPA above 2.50, consistent with the evaluation criteria in Box 9G.
- Objective Two (Box 10): I complied with all prescribed medical and mental health treatment requirements through the VA Medical Center, including adherence to appointments and provider recommendations, in accordance with the evaluation criteria detailed in Box 10G.
- Objective Three (Box 11): I completed and submitted job applications, along with cover letters and resume, and maintained detailed monthly job logs documenting my employment efforts, as required under the employment services criteria and evaluation procedures in Boxes 11G and 11H.

186. On July 9, 2025, at 8:22 AM, the VBA Counselor confirmed that my second EAA payment had been entered and referred to the VRE Officer for review.

187. Therefore, the issuance of a second EAA payment constituted an acknowledgment by VBA officials that I had met the necessary conditions under the IWRP to continue receiving EAA benefits, thereby reinforcing my eligibility and compliance.

VBA Failure to Acknowledge Completion & Unlawful Case Closure

188. Also, in the VBA Counselor's July 9, 2025, 8:22 AM email acknowledging receipt of my second job log, she inquired whether I was requesting continued Employment Services or formal case closure.

189. On July 10, 2025, at 12:19 PM, I responded to the Counselor's inquiry by requesting direct clarification as to whether her question was intended to initiate case closure under "Rehabilitated" status pursuant to 38 C.F.R. § 21.283, or whether my response would be construed as a voluntary withdrawal or another alternate classification:

- Given the ambiguous phrasing of her inquiry and her established pattern of imposing extralegal conditions, I expressed concern that the question may have been structured to obscure the true administrative consequences of my response.
- I made clear that any response I provided required full transparency to prevent further misclassification or procedural manipulation.
- In the same message I further asked the VBA Counselor to disclose whether any steps remained outstanding in order for my case to be formally closed under the Rehabilitated classification, an essential inquiry to ensure administrative transparency and guard against misclassification or further procedural delays.

190. On July 10, 2025, at 12:39 PM, the VBA Counselor responded by referencing an earlier email I had sent on May 8, 2025, in which I had stated my intent to request case closure after receiving both EAA payments:

- Therefore, rather than directly answering my request for clarification regarding whether such closure would be processed under "Rehabilitated" status pursuant to 38 C.F.R. § 21.283, or another alternate classification, as well as my request to

1 disclose whether any steps remained outstanding in order for my case to be formally
2 closed under the Rehabilitated classification, she referred to a prior email and
3 deflected the core questions I raised.
4

5 i. Her response failed to address the legal classification implications of my
6 inquiry and avoided confirming whether my closure would be processed in
7 accordance with the regulatory criteria governing successful program
8 completion,
9

10 ii. She also failed to state whether there were any objectives still needing to be
11 fulfilled in my plan in order to close the case under the Rehabilitated
12 classification.

13 1. The VBA Counselor's failure to directly answer my request for
14 clarification regarding the legal classification of my case closure
15 under 38 C.F.R. § 21.283(c)(1), as well as her refusal to disclose any
16 remaining steps required to formally close my case under the
17 "Rehabilitated" status, constitutes a denial of my due process rights.
18

19 a. By withholding this essential information, the Counselor
20 obstructed my ability to understand what was legally
21 required for case closure, thereby denying me a meaningful
22 opportunity to comply with procedural requirements.
23

24 b. This lack of transparency and refusal to engage in a clear,
25 lawful process unfairly prejudiced my case, delayed my
26 benefits, and undermined the fairness and integrity of the
27 VR&E program's administrative procedures.
28

Clarifying the Legal Stakes of the VBA July 9 Inquiry

191. Before turning to my response to the Counselor's July 10, 2025, email sent at 12:39 PM, which I replied to at 1:06 PM the same day, it is essential to re-anchor the reader in the significance of my earlier message sent at 12:19 PM on July 10.

192. That message was a direct and purposeful response to the Counselor's July 9, 2025, 8:22 AM inquiry: *Please advise if you are requesting continued Employment Services or case closure:*

- My 12:19 PM reply illustrates that I sought clarification on the procedural and legal implications behind the question, particularly whether "case closure" referred to closure under 38 C.F.R. § 21.283 (Rehabilitated status), voluntary withdrawal, or another outcome entirely.

193. This distinction is critical, as it demonstrates that I recognized and challenged the potential misuse of a seemingly innocuous choice to justify an incorrect case closure status classification:

- At the time of that exchange, I recognized that the question was not a straightforward or neutral inquiry, but a coercive prompt framed in binary terms that did not reflect the actual legal and factual complexity of my case, which, as the record shows, involved multiple tracks toward suitable employment.
- I understood that the Counselor's phrasing masked the nature of the outcome, particularly because it offered an innocuous-seeming option like "case closure," which could be misused to justify an incorrect status assignment such as "withdrawn," or another undisclosed classification, without procedural integrity.

- 1 • I also understood how unfair and loaded the question was. Therefore, as noted in
2 earlier paragraphs of this affidavit, I insisted on a clarification of legal consequence.
3 Specifically, I asked: “Is the intention behind your question to process case closure
4 under *Rehabilitated* status pursuant to 38 C.F.R. § 21.283, or... voluntary
5 withdrawal or another alternate classification?”
6

7 i. My inquiry was legally significant, as the phrasing of the Counselor’s
8 question lacked the specificity necessary to determine the regulatory
9 implications of my answer:
10

11 1. I immediately recognized that the Counselor’s binary language:
12 “continued services or case closure” was deceptively simple and not
13 rooted in the factual or procedural reality of my case; as the record
14 shows, I was simultaneously pursuing multiple tracks toward
15 suitable employment.
16

17 2. I identified that an innocuous response such as “case closure” could
18 be repurposed to assign a misleading or unlawful closure
19 classification, such as “withdrawn” or another status, without legal
20 basis or procedural fairness.
21

22 3. My question was one of legal self-protection and forward thought
23 because I knew the Counselor’s question was not asked in good faith
24 and, as the record going forward will show, my prediction was
25 correct, as she later proposed closing the case under an undefined
26 term not found in regulation. More on that later.
27
28

194. This exchange required careful unpacking because it reveals the Counselor's strategic use of ambiguous language to force a binary choice without disclosing the legal or procedural consequences tied to either option.

195. My 12:19 PM email response exposes that tactic for what it was: a calculated maneuver that risked stripping me of my procedural rights under 38 C.F.R. § 21.283 and misclassifying my case in contradiction to the facts on record.

196. Importantly, my response was not only procedurally precise; it was trauma informed.

197. It reflected a conscious, self-protective effort to clarify intent, preserve agency, and resist institutional coercion masked as routine inquiry.

198. Rather than fostering a cooperative, goal-oriented dialogue as intended by the overarching objectives of the VR&E program, the Counselor's approach was adversarial and obfuscatory.

199. It is for this reason that revisiting the exchange in detail was essential: it illuminates the bad faith at play and underscores my ongoing effort to ensure procedural integrity.

200. With that context fully established, I now turn to my 1:06 PM response to the Counselor's follow-up email sent at 12:39 PM on July 10, 2025.

Clarifying Intent and Asserting Eligibility Under 38 C.F.R. § 21.283

201. On July 10, 2025, at 1:06 PM, I sent a carefully written and legally grounded response to the VBA Counselor.

202. The purpose of this email was to reiterate my clear and transparent intent to close out my VR&E case under the Rehabilitated classification, consistent with 38 C.F.R. § 21.283.

- The email addressed several key matters:

- i. It acknowledged the Counselor's earlier reference to a May 8, 2025, email, but clarified that such a reference did not negate my right to ask follow-up

1 questions regarding the consequences of case closure, particularly in light
2 of the Counselor's evident refusal to engage transparently, consistent with
3 her ongoing pattern of tactical evasion and coercive framing.
4

5 ii. It reaffirmed that my request for closure was based not on receipt of EAA
6 payments, but on having fulfilled the vocational objective stated in my plan
7 through suitable employment.

8 iii. It emphasized that the projected end date of May 2026 no longer reflected
9 the actual facts and that prior revisions to the plan demonstrated a precedent
10 for procedural adjustments when warranted.
11

12 203. Most critically, the final paragraph of the email explicitly requested a resolution that
13 reflected the reality of my completion "without delay, misclassification, or unnecessary
14 resistance," and directly asked the Counselor to: "Please advise what, if anything, remains
15 outstanding in order for my case to be formally closed under Rehabilitated status."
16

17 • This sentence is central to understanding the email's intent and legal significance.

18 i. It directly invoked the governing regulation and provided the Counselor a
19 clear opportunity to identify any remaining procedural steps. The tone was
20 collaborative and professional, leaving no room for misinterpretation.
21

22 ii. It called on the Counselor to rise above delay tactics and categorical
23 assumptions, and to instead respond in alignment with the rehabilitative
24 intent of the program by clearly identifying any additional relevant
25 information she required in order to determine me rehabilitated for case
26 closure under 38 C.F.R. § 21.283, as I had requested.
27
28

204. It was necessary to explore this email in detail because it highlights my sincere, regulation-based attempt to clarify eligibility, finalize the process, and assert my rightful classification.

205. It also exposes, in contrast, the persistent misalignment between my cooperative outreach and the Counselor's resistance to acknowledging fulfillment of the plan's objectives.

206. With the legal and ethical foundation of my position made plain this July 10, 1:06 PM email, we now turn to the VBA Counselor's response sent on July 14, 2025, at 9:01 AM, which illustrates a continued refusal to engage the regulation I had explicitly cited and to answer the reasonable, legally relevant question I had posed.

Undermining Multi-Track Employment: The Counselor's July 14 Framework

207. The Counselor's July 14, 2025, 9:01 AM response marks a critical inflection point in the record.

208. At this stage, her communications shift from ambiguous omissions to the overt imposition of a rigid, binary employment framework, one that contradicts both the applicable regulations and the factual history of my case.

209. Rather than addressing the direct legal question I posed in July 10, 1:06 PM email, namely, what remained outstanding for case closure under 38 C.F.R. § 21.283, the Counselor abruptly reframes the issue using a loaded, binary prompt: *"Are you suitably employed with an employer or in self-employment?"*

- This question is not neutral. It constitutes an attempt to shoehorn my circumstances into a false dichotomy that does not exist in the applicable regulatory framework.
- More troublingly, it functions as another procedural trap, where any answer risks being misinterpreted to justify a pretextual denial.

- For that reason, before proceeding further, it is necessary to pause and anchor the record in the controlling legal definition of “suitably employed” under 38 C.F.R. § 21.283.

Suitably Employed” under 38 C.F.R. § 21.283(b)

210. The term “suitably employed” includes employment in the competitive labor market, sheltered situations, or on a nonpay basis which is consistent with the veteran’s abilities, aptitudes, and interests if the criteria contained in paragraph (c)(1) or (2) of this section are otherwise met.

- (c) Rehabilitation to the point of employability has been achieved. The veteran who has been found rehabilitated to the point of employability shall be declared rehabilitated if he or she:
 - i. Is employed in the occupational objective for which a program of services was provided or in a closely related occupation for at least 60 continuous days;
 - ii. Is employed in an occupation unrelated to the occupational objective of the veteran’s rehabilitation plan for at least 60 continuous days if the veteran concurs in the change and such employment:
 - 1. Follows intensive, yet unsuccessful, efforts to secure employment for the veteran in the occupation objective of a rehabilitation plan or a closely related occupation contained in the veteran’s rehabilitation plan;
 - 2. Is consistent with the veteran’s aptitudes, interests, and abilities; and;

- 1 3. Utilizes some of the academic, technical, or professional knowledge
2 and skills obtained under the rehabilitation plan. (Authority: 38
3 U.S.C. 3100)

4
5 **Undermining Multi-Track Employment: The July 14 Framework and Its Misuse of**
6 **§ 21.283**

7 211. We now return to where we left off before defining “suitably employed” under 38 C.F.R.
8 § 21.283(b).

9 212. The email sent by the VBA Counselor on July 14, 2023, 9:01AM attempts to articulate a
10 “framework” for Rehabilitation closure that is wholly inconsistent with the law governing
11 VR&E programs.

12 213. Specifically, her explanation misstates the regulatory criteria under 38 C.F.R. § 21.283,
13 introduces non-existent requirements, and misrepresents the role of the IWRP and IEAP in
14 determining closure. She writes in part:

- 15
16 • If you are suitably employed with an employer, you may qualify for Rehabilitation
17 closure and your case will be monitored for an additional 60 days to ensure job
18 retention and no further VRE services are needed. Rehabilitation closure reflects
19 all objectives are completed in the IWRP/IEAP.

- 20
21 i. This statement reflects a distortion of the governing legal standard, which
22 is fully set forth in 38 C.F.R. § 21.283 and does not require "monitoring for
23 an additional 60 days," nor does it predicate closure on a veteran's
24 completion of objectives listed in the IWRP or IEAP. The regulation instead
25 outlines specific, measurable criteria for determining when a veteran shall
26 be declared rehabilitated:
27
28

1. If the veteran is employed in their target occupation or a closely related field for at least 60 continuous days;
2. Or if employed in an unrelated field, that such employment aligns with the veteran's aptitudes, interests, and abilities and utilizes knowledge and skills obtained under the plan;
3. Or if the veteran pursues additional education in lieu of employment under defined conditions;
4. Or if, in the absence of employability under the original plan, the veteran obtains and retains suitable employment utilizing the services provided.

214. At no point does the regulation assign a post-employment "monitoring" period as a condition of Rehabilitation status.

215. Nor does the regulation mention the IWRP or IEAP as dispositive sources of closure criteria.

216. The only relevant legal standard is whether the veteran has overcome their employment handicap to the maximum extent feasible, demonstrated by the attainment and retention of suitable employment consistent with § 21.283(c) or (d).

- If the VA intended to impose additional requirements, such as tying Rehabilitation closure strictly to the completion of objectives within my IWRP or an IEAP, such conditions should have been clearly defined and agreed upon within my individualized plan.
- Absent explicit inclusion of these conditions in the plan, the VA's unilateral imposition of them constitutes an improper and undisclosed procedural barrier that

contradicts the regulatory framework and violates principles of due process and fair notice.

- **NOTE:** The record clearly shows my good-faith efforts to develop and follow an IEAP, which the Counselor repeatedly disregarded or dismissed.

217. We now turn to the VBA Counselor second paragraph of her July 14, 2023, 9:01AM email, which further compounds the confusion by attempting to route my case toward "Maximum Rehabilitation Gain" (MRG) closure; a designation that is not only inappropriate because it is not found under any regulatory framework, but downright insulting in light of the record. She writes:

- If you are suitably employed in self-employment, you qualify for maximum rehabilitation gain (MRG) closure. If your case is closed as maximum rehabilitation gain closure it reflects that you completed most of the objectives of your rehabilitation plan but do not qualify Rehabilitation closure as your plan does not reflect self-employment as your vocational goal.

i. First, the phrase "suitably employed in self-employment" is a self-contradictory and undefined term. The phrase appears nowhere in the VR&E regulations and reflects a poor attempt to merge legal concepts without fidelity to their actual meaning. Either employment is suitable under § 21.283, or it is not, and self-employment is not disqualified from meeting that standard.

ii. Second, her explanation once again substitutes her own criteria in place of the regulation. According to her logic, a veteran may meet the standard of suitable employment, yet still be denied Rehabilitation closure because their

IWRP does not list self-employment as the “vocational goal.” This argument fails for several reasons:

1. 38 C.F.R. § 21.283 makes no reference to the method of employment (e.g., self-employment vs. W-2 employment) as determinative of closure.
 2. The regulation focuses on whether the employment is *suitable*, whether the employment was obtained as a result of services provided, and whether the veteran has overcome their employment handicap to the maximum extent feasible none of which are conditional upon the employment form.
 3. If the VA intended to withhold Rehabilitation closure from all self-employed veterans whose IWRPs do not expressly identify “self-employment” as a goal, it had a legal obligation to clearly establish such a condition in the IWRP itself. It did not.
- Returning to her definition of MRG, she states: “If you are suitably employed in self-employment, you qualify for maximum rehabilitation gain (MRG) closure. If your case is closed as maximum rehabilitation gain closure, it reflects that you completed most of the objectives of your rehabilitation plan but do not qualify for Rehabilitation closure as your plan does not reflect self-employment as your vocational goal.”
 - i. This statement has two prongs; according to her definition, a veteran qualifies for case closure under MRG when:

1. *Most or some, but not all, of the objectives outlined in their Individualized Written Rehabilitation Plan (IWRP) are completed;*
and
2. The veteran does not qualify for Rehabilitation closure because the IWRP does not reflect self-employment as the designated vocational goal.

218. Upon careful review of the Counselor's email, it became immediately apparent that her definitions; one for "suitable employment" with an employer and another for "suitable employment" in the context of self-employment, were entirely arbitrary and lacked any legal or regulatory foundation.

219. In sum, the Counselor's statement regarding Rehabilitation closure for veterans "suitably employed with an employer" grossly misrepresents the regulatory standard under 38 C.F.R. § 21.283.

220. The regulation clearly defines Rehabilitation status based on objective criteria related to the veteran's actual employment and retention in a suitable occupation, without any mention of a mandatory 60-day monitoring period or the completion of IWRP or IEAP.

221. As already discussed, any additional conditions that the VA wishes to impose must be explicitly incorporated into the veteran's individualized plan and mutually agreed upon; absent such agreement, these unilateral impositions are improper and violate principles of due process and fair notice.

222. Notably, the record demonstrates my consistent, good-faith efforts to develop and pursue an IEAP, efforts the Counselor nonetheless ignored or dismissed.

1 223. Moreover, the Counselor’s attempt to frame my employment status within a rigid binary,
2 “Are you suitably employed with an employer or in self-employment?” functions as a
3 procedural trap designed to force a false choice that does not exist in the regulatory framework.

4
5 224. This oversimplification threatens to mischaracterize complex employment circumstances
6 and pretexts for denying proper rehabilitation closure.

7 225. Such a distorted binary undermines the multi-track employment approach that the
8 regulations and my case history clearly support.

9
10 **Objection to Validity of the Maximum Rehabilitation Gain (MRG)**

11 226. On July 14, 2025, at 2:49 PM, I formally objected via email to the proposed classification
12 of my case under “Maximum Rehabilitation Gain” (MRG), stating that the term appears
13 nowhere in any governing regulation under 38 C.F.R. Part 21.

14 227. In that message, I explicitly requested citation to any regulatory authority, whether in the
15 Federal Register or codified VA rules, that lawfully defines or authorizes “MRG” as a valid
16 closure classification. No such citation has been provided to date.

17
18 228. I further clarified that my vocational goal, as documented in my signed IWRP dated May
19 22, 2024, was “suitable employment” in the occupational field of analytics or systems analysis.

20 229. That goal was supported by three defined objectives, **all** of which were successfully
21 completed; therefore, closure under MRG is not only inapplicable but also factually and legally
22 indefensible, as the MRG classification hinges on incomplete IWRP objectives, even if the
23 goal is listed. In this case, both the goal and objectives were fulfilled.

24
25 230. This email represented a direct challenge not only to the Counselor’s misapplication of
26 federal law, but also to her repeated mischaracterization of the factual record and her reliance
27 on binary questions designed to drive a false narrative.

231. It served as a final reiteration of my request for proper case closure under 38 C.F.R. § 21.283, the Rehabilitated classification, which the record clearly supported.

232. For the record, I affirm again that I have successfully completed all three objectives outlined in my signed IWRP dated May 22, 2024, and attached this IWPR to my email.

233. These objectives, already documented in the administrative record, were completed in full and without deviation.

234. At no time did the Counselor assert that any of the three IWRP objectives remained unfulfilled. Nor was any formal amendment ever made to the signed IWRP, dated May 22, 2024, that would introduce new or revised objectives.

235. I stated that my completion of both the regulatory and contractual obligations of the VR&E program render any alternative closure classification, such as MRG, legally baseless and procedurally improper.

Improper MRG Closure Initiated by VBA Counselor Despite Ongoing Discussion & Legal Objection to the Term

236. On July 15, 2025, at 8:18 AM, the VBA Counselor responded to my earlier email objecting to the use of "Maximum Rehabilitation Gain" (MRG) as a case closure category. Rather than addressing the objection I had raised or engaging in the discussion around the appropriateness of MRG, as I had clearly invited her to do, she instead issued a formal letter titled *Melchizedek I VR48 07152025.pdf*, delivered via email.

- The letter included language stating, “We propose closing your case,” and justified this proposal on the basis that I had received the maximum allowable benefits under the VR&E program.

- By bypassing the core legal and regulatory issues in dispute, the Counselor not only failed to resolve my formal objection but also initiated a closure process that inflicted multiple harms. These include:
 - i. Procedural harm and a due process violation, as the closure proposal proceeded without resolution of the standing legal challenge to MRG or adequate explanation under applicable law;
 - ii. Substantive harm, in that my entitlement to a proper closure under 38 C.F.R. § 21.283 as "rehabilitated" may be unlawfully denied or supplanted with a lesser status (MRG), with potential downstream impacts;
 - iii. A chilling effect and act of bad faith, where the Counselor's refusal to engage the substantive issues appears retaliatory or obstructive, undermining my ability to meaningfully advocate within the program; and
 - iv. Misrepresentation, in that characterizing MRG as a "positive outcome" distorts the regulatory structure, the factual record, and my lawful status within the program.

237. Before discussing the formal letter, I must first address the VBA Counselor's accompanying email, which warrants close scrutiny:

- The email was sent less than 24 hours after my July 14, 2025, message in which I explicitly objected to the use of the term "MRG" in my case. I challenged its legitimacy, requested citation to statutory or regulatory authority, and raised concerns about its broader misuse within the VR&E program.

- i. My July 14 email did not mention employment track but focused solely on disputing the legitimacy of the MRG designation as a lawful basis for case closure.
- ii. The Counselor's email framed the MRG classification as a "positive outcome" and claimed the attached letter contained supporting legal and policy justifications, including excerpts from the VR&E manual and applicable statutes.
- iii. The email stated that I had 30 days to respond if I disagreed with the proposed determination and that, absent a reply by August 14, 2025, the case would be submitted for closure under the MRG classification.
- iv. Though she offered to "discuss this decision" or review "additional relevant information," this gesture was contradicted by her prior evasion of the discussion when I had timely initiated it on July 10. At that time, I had already asked what, if anything, she needed from me in order to close my case under 38 C.F.R. § 21.283(c)(1), and she failed to respond. Her refusal to engage with that inquiry implies a broader unwillingness to consider relevant facts I had already raised. The fact that her offer came less than 24 hours after I formally challenged the MRG designation in my July 14 email further undermines the sincerity and timing of her claimed openness, suggesting it was a defensive response, not a genuine invitation.
- v. I had already raised detailed regulatory concerns in my July 14 email, submitted just one day prior, making clear that I was actively engaged in

1 resolving the matter and had not been afforded adequate time for true
2 deliberation.

3 vi. The email included language stating she was “happy to discuss this
4 decision” or review “additional relevant information,” but this gesture is, at
5 best, performative or disingenuous, since she already had the opportunity to
6 clarify those items and chose not to.
7

8 1. I had already initiated substantive regulatory discussion regarding
9 the proper use and applicability of the MRG classification and raised
10 specific objections in my July 14, 2025, email.
11

12 2. Crucially, I had already asked her—on July 10, 2025—what, if
13 anything, she needed from me in order to close my case under 38
14 C.F.R. § 21.283(c)(1), and she failed to answer. That inquiry went
15 unanswered, hindering transparency and cooperation.
16

- 17 • Her July 15 email thus constituted formal notice of agency intent to close my case
18 under a disputed classification, despite an unresolved legal and factual challenge
19 pending on the record.
- 20 • By initiating closure proceedings while simultaneously claiming openness to
21 further dialogue, the Counselor denied me a meaningful opportunity to resolve the
22 matter collaboratively.
- 23 • This conduct exemplifies procedural irregularity, pretextual justification, and
24 administrative impropriety in violation of 38 C.F.R. §§ 21.70 and 21.283.
25
26
27
28

1 238. The pattern exposed in the VBA Counselor's July 15, 2025, at 8:18 AM, disregarding
2 documented facts, misapplying governing regulations, and constructing a false administrative
3 narrative, mirrors the same misconduct I previously disclosed as a federal whistleblower.

4
5 239. Once again, this case reveals how agency officials manipulate procedural frameworks to
6 manufacture predetermined outcomes while distorting facts and avoiding accountability, all
7 under the guise of "Veteran's support."

8 240. The Counselor's failure to address my July 14 objections before issuing the formal MRG
9 letter confirms that the outcome had been predetermined.

10
11 241. Her July 15 email falsely characterized the MRG designation as "a positive outcome," even
12 though MRG is a fallback closure status that I do not qualify for under its own definition.

13 242. These actions reflect a staged administrative process in which legal objections were
14 bypassed in favor of formalizing an outcome that was already decided, eroding procedural
15 fairness and reinforcing the illusion of meaningful dialogue.

16
17 **Maximum Rehabilitation Gain Defined & Not Applicable**

18 243. A dedicated section on "Maximum Rehabilitation Gain" (MRG) is necessary because the
19 term was misused and misrepresented by the VBA Counselor during her July 15 at 8:18 AM
20 email.

21
22 244. Unlike other closure categories, MRG has no formal regulatory definition, and its improper
23 application in my case was not a benign misunderstanding, it was an administrative maneuver
24 with material consequences.

25 245. To expose this procedural failure clearly and substantively, the term must be isolated,
26 examined in full context, and directly refuted within the record.

- According to the VBA Counselor, Maximum Rehabilitation Gain (MRG), in her own words: “MRG refers to a case closure category within the VR&E program, used when a veteran has completed some, but not all, objectives of their rehabilitation plan.”

i. **NOTE:** This definition was communicated via email during the pendency of my case and was used as the basis for a proposed closure, even though I had not confirmed that I was suitably employed in self-employment, nor had the Counselor established any factual basis to support such a determination.

ii. In my case, all objectives were fully completed, as evidenced by academic completion, health compliance, submission of job logs, and issuance of EAA payments.

iii. Thus, MRG is not only inapplicable, but it also constitutes an administrative downgrade in direct contradiction to the record.

iv. This contradiction did not arise from any binding regulation, as no formal regulatory definition of "MRG" exists.

v. Rather, it stems from the Counselor’s improper application of a term she unilaterally defined and then misapplied.

246. The VBA Counselor’s reasoning inconsistency reveals not merely a misunderstanding, but an egregious misuse of discretion, fabricating criteria, then misapplying them to justify an outcome that contradicts both regulation and the factual record.

247. Specifically, the record shows and I have declared multiple times throughout the affidavit that I have completed all objectives of my IWRP (rehabilitation plan), which disqualifies me

1 from MRG closure, as MRG applies only when “some” objectives are met according to the
2 VBA Counselor.

3 248. In sum, the misuse of the term “MRG” was not a matter of interpretive error, but a
4 deliberate distortion that conflicts with both fact and policy, necessitating formal correction in
5 the administrative record.
6

7 **The July 15, 2025, Closure Letter – The Formal Letter**

8 249. We now turn to the formal letter, *Melchizedek I VR48 07152025.pdf*, (hereinafter referred
9 to as letter) transmitted by the VBA Counselor’s email on July 15, 2025.
10

11 250. This letter continues from paragraph 236 of this affidavit and disregards the ongoing
12 legal and factual dispute and discussion, initiated by me, one day before, on July 14, 2025,
13 email, regarding the validity of the Maximum Rehabilitation Gain (MRG) designation.

14 251. The letter warrants close analysis, as it advances a false narrative on multiple points:

- 15 • It constitutes a formal agency action proposing case closure under a designation
16 referred to as MRG, as if no ongoing legal and factual dispute and discussion was
17 underway around the term MRG before this letter was issued.
- 18 • It relies on a non-regulatory term, “MRG,” for which no formal definition exists in
19 38 CFR, thereby introducing ambiguity and abuse of discretion by the VBA
20 Counselor.
- 21 • It contradicts the factual record, which shows I have completed *all* IWRP
22 objectives, not merely “some,” making MRG categorically inapplicable under the
23 Counselor’s own definition of MRG.
24
25
26
27
28

- It presents a misleading narrative that I am not rehabilitated despite fulfilling my plan's objectives in full, thus artificially justifying an administrative downgrade and undercutting the legitimacy of my vocational achievements.
- Critically, it fails to reference or incorporate the governing IWRP, and the corresponding VR-67 letter:
 - i. This misrepresentation indicates that the Counselor either:
 - 1. lacked awareness of the governing version of my rehabilitation plan or
 - 2. knowingly cited an obsolete version to manipulate the closure determination.
- The letter states "You signed your IWRP/IEAP on 09/08/2023 agreeing to Employment through Long Term Services track."
 - i. This statement is factually impossible and demonstrably false:
 - 1. The governing IWRP of my case was signed on May 22, 2024, not September 8, 2023, as discussed in paragraph 36 of this affidavit.
 - 2. The claimed "Employment through Long Term Services track" language appears nowhere in the actual signed document; and the Counselor is attributing phantom plan terms to a non-governing document.
 - 3. A comprehensive review of my signed IWRP dated May 22, 2024, and any IWRP I had signed before this date reveals that the term "Long Term Services" appears zero times throughout the entire document.

1 a. The word "services" appears only in standard form sections
2 such as "DURATION OF SERVICES" and references to
3 "medical and/or dental services" and "employment
4 services."

5
6 b. At no point does the document contain language establishing
7 an "Employment through Long Term Services track" or any
8 restrictions on entrepreneurial activities or pursuing multiple
9 avenues of suitable employment simultaneously.

10
11 4. The VBA Counselor's repeated fabrication of plan terms constitutes
12 a fundamental violation of administrative procedure, due process,
13 and veteran rights.

14
15 5. The Counselor cannot manufacture contractual obligations ex post
16 facto to justify adverse actions.

17
18 6. This pattern of systematic misrepresentation renders the case closure
19 determination procedurally invalid and legally indefensible, as it is
20 based entirely on fabricated evidence rather than the actual terms of
21 my governing rehabilitation plan.

- 22 • The letter fundamentally misstates and mischaracterizes both my January 16, 2025,
23 email and my IWRP.

24 i. The VBA Counselor has fabricated evidence to manufacture a deviation
25 from my IWRP by falsely claiming that my IWRP, listed *Employment*
26 *through Long Term Services Track*, which supports competitive, integrated
27 employment, not self-employment” the record shows otherwise:
28

1 1. As established in paragraph 89 of this affidavit, my January 16,
2 2025, email explicitly confirmed my commitment to remain on the
3 rehabilitation path established on May 22, 2024, a path that
4 contains no language prohibiting veterans from pursuing multiple
5 employment tracks or entrepreneurial opportunities, at the same
6 time.
7

8 2. **Critical evidentiary fact:** The phrase "Employment through Long
9 Term Services" appears nowhere in the signed, controlling IWRP
10 dated May 22, 2024.
11

12 3. This is not a matter of interpretation, it is a verifiable absence of
13 language that the Counselor claims exists.
14

15 4. The Counselor's retroactive insertion of "Long Term Services
16 track" language constitutes post-hoc plan modification without
17 proper procedure, veteran consent, or legal authority:

18 a. This constitutes a fabrication of terms after the fact, which is
19 both procedurally invalid and legally indefensible and
20 constitutes bad faith administration.
21

22 b. This fabrication appears designed to create grounds for case
23 closure that do not exist under the actual, signed
24 rehabilitation plan

- 25 • The letter omitted my April 1, 2025, email where I gave formal notice of my
26 program completion and a transparent submission of documentation reflecting both
27
28

1 job-seeking and entrepreneurial engagement, as explicitly stated in the body of that
2 message.

- 3 i. By omitting my April 1 disclosure, the Counselor creates a false impression
4 that I deviated from my IWRP and chose self-employment in contradiction
5 to my plan, when in reality, as this email exposes, I remained aligned with
6 my IWRP while expanding the scope of employment which no federal law
7 or my IWRP forbade.
- 8 ii. The failure to account for this later, relevant evidence shows a procedural
9 flaw in how the case was evaluated and how closure was justified.
- 10 iii. It signals a biased or incomplete review, which undermines the integrity of
11 the proposed closure under MRG, which I do not qualify for because my
12 objectives were all achieved:
 - 13 1. The VR&E program is intended to be individualized and veteran
14 centered.
 - 15 2. My April 1, email reflects a proactive and responsible effort to fulfill
16 the IWRP, not a departure from it.
 - 17 3. Selectively citing a prior email (January 16) to negate this progress
18 violates both the spirit and logic of vocational rehabilitation
19 planning.
 - 20 4. It fails to account for the economic necessity and lawful right of
21 veterans to pursue multiple avenues of suitable employment,
22 including both traditional job-seeking and entrepreneurial
23 development, or all other types of employment, especially in a
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1 volatile labor market where flexibility is essential for livelihood and
2 sustainability.

3 a. The VBA Counselor herself holds two concurrent positions,
4 one within the public sector and another in private-sector
5 employment, so for her not to recognize that a veteran can
6 similarly pursue two parallel avenues of suitable
7 employment either reflects a deliberate double standard or a
8 fundamental failure of judgment inconsistent with the
9 principles of vocational rehabilitation.
10

11
12 iv. The record shows I maintained transparency with the VBA Counselor,
13 submitted job-seeking documentation alongside entrepreneurial activities,
14 and expressly reaffirmed my alignment with the original IWRP goals,
15 which makes the claim of deviation or exclusion of self-employment
16 factually and procedurally false.
17

18 v. The cited email does not negate my right or capacity to pursue dual avenues
19 of *suitable employment*, as nothing in federal law, regulation, or my IWRP
20 prohibits a veteran from doing so; indeed, such flexibility is a hallmark of
21 individualized rehabilitation planning.
22

23 vi. By disregarding all my documented efforts and invoking a narrow reading
24 of my employment activities, the letter constructs a false binary between
25 traditional employment and self-employment, ignoring the broader
26 regulatory aim of supporting veterans' sustainable reintegration through any
27 suitable and lawful means.
28

- The letter's failure to acknowledge a multiple-track engagement reflects either a willful disregard of the record or a fundamental misapplication of vocational rehabilitation principles.
- The cited criteria for self-employment rehabilitation closure are inapplicable because I neither requested nor agreed to a self-employment plan; I remained aligned with my IWRP while lawfully engaging in self-employment efforts as part of my overall strategy to achieve suitable, sustainable employment in the field of data analytics, which is not unlawful to do.

252. In conclusion, while the letter attempts to justify closure under MRG by listing cherry-picked limited facts as evidence of partial plan completion, the actual record demonstrates the opposite:

- I fully met all three objectives of my IWRP, dated May 22, 2024;
 - i. My graduate degree was conferred with a GPA exceeding the required standard;
 - ii. I remained in compliance with all health-related conditions of the plan; and
 - iii. I actively participated in employment services, submitting documented evidence of both job-seeking activity and entrepreneurial development.

253. The letter omits this critical context, systematically fabricates plan terms and signing dates, and ignores my formal April 1, 2025, submission, which reflected transparent compliance with all program goals.

254. The VBA Counselor's repeated and demonstrable fabrication of IWRP terms, including the false claim that I agreed to an "Employment through Long Term Services track" that appears nowhere in my actual signed plan, or any plan before it, and the factually assertion that I signed

my IWRP on September 8, 2023 when it was actually signed May 22, 2024, constitutes failure to understand which plan is the governing plan, upon the administrative record and a fundamental violation of due process.

255. These fabrications are not innocent errors but systematic misrepresentations designed to manufacture grounds for case closure that do not exist under my governing rehabilitation plan.

256. The Counselor cannot create phantom plan terms to a non-governing document and then enforce fabricated obligations to justify adverse action against a veteran who has demonstrably completed all actual IWRP objectives.

257. The claim that I only completed "some" objectives is not merely factually false, it is based entirely on fabricated evidence and non-existent plan language.

258. This pattern of systematic fraud renders the MRG closure determination procedurally invalid, legally indefensible, and constitutes bad faith administration that violates both regulatory requirements and fundamental principles of administrative law.

259. No legitimate agency action can be sustained when it rests entirely upon fabricated documentary evidence.

260. In light of the above, July 15, 2025, formal letter does not merely reflect administrative error, it constitutes a procedurally invalid agency action rooted in falsified evidence, misrepresented plan terms, and bad faith decision-making.

261. Accordingly, any closure determination based on this letter is legally void and must be nullified.

Refusal for Case Closure Under Rehabilitated

262. Having now addressed the fabricated closure rationale advanced through the "Maximum Rehabilitation Gain" (MRG) designation, it becomes necessary to examine the agency's refusal

1 to declare me “Rehabilitated” under 38 C.F.R. § 21.283, despite undisputed evidence that I met
2 every objective of my rehabilitation plan.

3 263. This refusal is not supported by the record, by regulation, or by reason.

- 4 • It cannot be plausibly explained as simple error, oversight, or even incompetence.
- 5 • Instead, the totality of the conduct, the distortions, fabrications, omissions, and
6 refusal to engage lawful requests, points toward a third and far more troubling
7 possibility: a deliberate effort to deny lawful recognition motivated by malice,
8 political reprisal, or institutional self-preservation.
- 9 • In other words, this was not a bureaucratic failure. It was a conscious act of
10 retaliatory discretion, the selective misuse of process to punish rather than to serve.

11 264. The refusal to declare me “Rehabilitated” under 38 C.F.R. § 21.283, despite what is on the
12 factual record, cannot be reasonably interpreted as administrative error, it reflects a deeper,
13 politically charged motive masked as bureaucratic discretion.

- 14 • The behavior of the Counselor is not bureaucratic, it is ideological.
- 15 • No one asserts a non-regulatory closure term (MRG), acknowledges that the
16 veteran completed all objectives, misquotes or distorts the record repeatedly, and
17 ignores requests for citation or lawful process, unless they are either:
 - 18 i. grossly incompetent or
 - 19 ii. driven by a motive beyond the case itself.
- 20 • In this context, Option (2) is far more plausible.
 - 21 i. The VBA Counselor shut down discussion immediately after I raised
22 legitimate legal concerns about MRG’s validity, which is not just
23 dismissive, it is tactical.

- 1 ii. Her “happy to discuss” language was procedural theater, not sincere
2 engagement; therefore, this was retaliation with a bureaucratic smile.
- 3 iii. The Counselor’s professional background in psychology appears to have
4 been leveraged not to support rehabilitation, but as a tool of control,
5 reflecting problematic Western psychological practices that pathologize
6 legitimate advocacy and dissent, thereby weaponizing institutional power
7 against me and others who have been victimized by similar mental health
8 approaches.

10
11 265. This case originated within the Northeast Region, both the same regional network of the
12 Veterans Benefits Administration responsible for my case and the same jurisdiction where I
13 previously served as a federal official and filed a whistleblower disclosure against the
14 Consumer Financial Protection Bureau (CFPB), specifically exposing regulatory misconduct,
15 similar to the misconduct I am exposing here and data falsification in its Northeast Regional
16 Office.

17
18 266. This is also the jurisdiction of Massachusetts, represented by Senator Elizabeth Warren,
19 the original architect of the CFPB.

20 267. In that context, my whistle blower complaint posed reputational and structural risks to
21 those closely aligned with that institution’s legacy.

22
23 268. Within that political geography, the act of declaring me “Rehabilitated” would carry
24 symbolic and institutional implications:

- 25 • it would affirm my standing as a law-abiding citizen, vindicate my integrity in the
26 face of a retaliatory federal investigation, and
- 27 • undermine the constructed narrative of me as an “insider threat.”

269. In essence, it would dismantle the justification for how I was previously treated.

270. Faced with this dilemma, the assigned VBA Counselor instead applied a closure status: “Maximum Rehabilitation Gain” (MRG) which is neither defined nor authorized by federal regulation and which, under her own stated definition, I did not meet.

271. According to her, MRG applies only when a veteran has completed “some, but not all” objectives of their rehabilitation plan.

272. The record demonstrates I completed *all* objectives, as confirmed by submitted documentation, counselor acknowledgments, and the issuance of Employment Adjustment Allowance (EAA) benefits.

273. Thus, the MRG designation not only contradicts fact, but also violates the Counselor’s own stated criteria.

274. This misuse of authority, assigning me an inapplicable closure category while disregarding my documented legal compliance, cannot be separated from political context.

275. It reflects a retaliatory instinct to suppress my legitimacy rather than acknowledge it, and it exposes the extent to which public officials resort to regulatory distortion to avoid affirming the integrity of individuals who have challenged institutional wrongdoing.

276. What I endured was not neutral administration, it was the calculated use of ambiguous process to withhold lawful recognition.

277. My refusal to deviate from legal procedure, to jointly negotiate an IEAP, or to accept non-regulatory demands was reframed as resistance and documented in the VBA internal systems as insubordinate:

- At multiple points throughout the record, I made clear and repeated inquiries asking what additional relevant documentation was required to determine my eligibility for case closure under 38 C.F.R. § 21.283:

- i. These questions were direct, lawful, and made in good faith.
- ii. The Counselor never answered.
- iii. She dodged the inquiry, ignored requests for clarity, and issued no regulatory guidance in response, despite being legally obligated to do so.
- iv. This cannot be written off as oversight.
- v. It reflects constructive evasion: the deliberate refusal to acknowledge or process a lawful request in order to avoid issuing an outcome the agency finds politically or reputationally inconvenient.

1. Constructive Evasion is when an official does not outright deny a request, but refuses to engage with it meaningfully, especially when the law requires them to respond, act, or guide.

- a. It's a form of bureaucratic stonewalling that allows the agency official to avoid issuing a clear "no," while also denying the "yes" a person is lawfully entitled to.

278. In reality, it was my adherence to the law that provoked institutional evasion and constructive evasion.

279. Those who cannot rise to the minimum standard of the laws they are sworn to enforce reveal not only professional inadequacy but also a profound absence of moral character.

1 280. When such individuals are faced with an individual who invokes higher principles, law,
2 fairness, dignity, and Justice, they resort to slander, misclassification, and retaliatory silence,
3 and that is what occurred here.

4
5 281. The Counselor's conduct was not a mistake, it was an act of institutional cowardice: a
6 refusal to declare me Rehabilitated not because I failed, but because I succeeded.

7 **THE VBA COUNSELOR'S ABANDONMENT OF THE VR&E PROGRAM'S**
8 **REHABILITATIVE MISSION**

9 282. The Veteran Readiness and Employment (VR&E) program, codified under 38 U.S.C.
10 Chapter 31, exists to serve a singular, unambiguous mission:

- 11 • To provide vocational rehabilitation services that enable veterans with service-
12 connected disabilities to achieve maximum independence in daily living and, to
13 the maximum extent feasible, to become employable and to obtain and maintain
14 suitable employment.
- 15 • This mission is not conditional, discretionary, or subject to the personal
16 predilections of individual counselors. It is a statutory mandate grounded in the
17 nation's covenant with those who served. The program's rehabilitative framework
18 is designed to empower veterans, not to entrap them within bureaucratic mazes
19 constructed by officials who have forgotten their foundational purpose.

20
21
22 283. My IWRP, dated May 22nd, 2024, establishes a crystal-clear program goal: "obtain and/or
23 maintain suitable employment" explicitly contemplates multiple pathways to vocational
24 success, reflecting the individualized, veteran-centered approach that defines quality
25 rehabilitation planning.
26
27
28

1 284. Despite this documented success, the VBA Counselor has manufactured grounds for denial
2 by citing an "Employment through Long Term Services track" that appears nowhere in my
3 signed IWRP. This is not interpretation, it is fabrication of evidence:

- 4 • A review of my actual IWRP reveals that the term "Long Term Services" appears
5 zero times in the document, contains no language restricting entrepreneurial
6 activities, and establishes no designation of exclusive "tracks" precluding multiple
7 employment pathways.
- 8 • The IWRP's language, "obtain and/or maintain suitable employment" explicitly
9 contemplates multiple pathways to vocational success.

10 285. The VBA Counselor has perverted the rehabilitative process by weaponizing procedural
11 complexity to create barriers where none should exist, ignoring documented completion of all
12 plan objectives, manufacturing compliance failures rather than acknowledging rehabilitation
13 achievements, and applying the invalid MRG classification despite completion of all objectives.

14 286. Under her own definition, MRG applies only when veterans complete "some, but not all"
15 objectives. I completed all objectives, making MRG categorically inapplicable.

16 287. The VBA Counselor exhibits what one identifies as legalistic manipulation divorced from
17 program purpose through selective regulatory application while ignoring veteran rights,
18 applies distortion of facts to support predetermined conclusions, and participates in procedural
19 weaponization to avoid acknowledging clear achievements.

- 20 • This perverts legal process from a tool of justice into an instrument of oppression,
21 transforming rehabilitation into entrapment and by doing so, the Counselor had
22 created a stalemate that leaves my case indefinitely suspended without any lawful

path to completion and which is addressed in the “A Manufactured Stalemate” section below, but beforehand, the harm endured must be discussed.

Emotional Distress and Abuse of Power

288. The deliberate manipulation of this process by the Counselor has inflicted significant and lasting harm on me as a veteran.

289. Her abuse of institutional authority, marked by the fabrication of procedural obstacles, misrepresentation of regulatory terms, and disregard for program statutes, has not merely delayed my rehabilitation, but has obstructed it entirely.

- I have experienced profound emotional distress, including chronic sleep disruption, anxiety, and the psychological burden of being pathologized for advocating on my own behalf.
- These are not abstract harms. They are the direct result of a system manipulated to create uncertainty, induce helplessness, and deny rightful outcomes.
- What should have been a rehabilitative process became an administrative dead end, one that undermines my ability to secure stable employment, move forward professionally, and achieve the post-service stability the law guarantees.

290. This constitutes not only a failure of the VR&E program but an abuse of power that has caused real psychological and material damage.

A Manufactured Stalemate: How Procedural Contradictions Obstructed Lawful

Closure

It’s often said that ego makes poor policy, and in this case, ego and ambition have produced a paper trail that borders on farce. The record is riddled with contradictions that defy logic and

1 law, exposing a manufactured stalemate rather than a legitimate administrative outcome. Indeed,
2 those outside of government who have reviewed the facts unanimously arrive at the same
3 conclusion: this process is not only unlawful, it is foolish. Foolish in its premise, foolish in its
4 execution, and foolish in the way it transparently reveals its own contradictions.

5
6 The VBA Counselor has manufactured a case closure dilemma by simultaneously
7 disqualifying me from closure under 38 C.F.R. § 21.283 based on the unfounded assumption that
8 I am exclusively self-employed, despite clear evidence that I was pursuing both traditional
9 employment and entrepreneurial activity in parallel. This is demonstrated by submitted job logs
10 tied to Employment Adjustment Allowance (EAA) payments, which, though unlawfully
11 conditioned, were nonetheless approved by the Counselor, confirming her awareness of my dual-
12 track engagement. Moreover, nothing in the record precludes the possibility that I was, or could
13 be, employed outside of self-employment.

14
15 At the same time, I have been deemed “eligible” for closure under MRG based on criteria
16 that I demonstrably do not meet, even under the Counselor’s own stated definition. The result is
17 an administrative contradiction: the VBA Counselor seeks to close my case under MRG, yet
18 according to her own definition, I do not qualify, because I completed all of my rehabilitation
19 objectives, not just some. At the same time, she claims I am ineligible for standard rehabilitation
20 closure based on an unsupported assumption that I was referring to self-employment, despite
21 evidence showing I pursued multiple forms of suitable employment.

22
23
24 This pattern reflects an absence of good-faith engagement, a disregard for binding federal
25 law, and a procedural manipulation designed to misclassify my case status.

Legal and Ethical Boundary, Not Abandonment

At this point, having made every good-faith effort to comply with 38 C.F.R. § 21.283 and to obtain clear, lawful guidance from the assigned VBA Counselor, I can no longer in good conscience continue engaging with her. Through a pattern of misconduct, she has fundamentally compromised the integrity of the VR&E process. The responsibility now lies with the agency to correct the classification error the VBA Counselor manufactured, based on the facts and legal standards detailed in this affidavit. My decision to disengage reflects not a refusal to cooperate with the VR&E program, but a refusal to further enable a counselor who has operated outside the bounds of her authority, disregarded governing regulations, and misrepresented both my record and the controlling law. The VBA Counselor has perverted the rehabilitative process by weaponizing procedural complexity not to resolve but to *sustain* false barriers where none should exist, ignoring documented completion of plan objectives and fabricating compliance failures to obscure rehabilitation success, and applying the invalid MRG classification despite completion of all objectives. The undisputed facts demand closure under "Rehabilitated" status per 38 C.F.R. § 21.283(c)(1). I completed all IWRP objectives in full, achieved the program goal through suitable employment in the analytics field, and maintained transparency and regulatory compliance throughout the entire process. Any other classification constitutes institutional betrayal of the program's mission to serve those who served. The VBA Counselor has abandoned that mission in favor of bureaucratic obstruction. Justice demands correction of her manufactured classification. I will not lend legitimacy to a process that, under her administration, has functioned less as a veteran support service and more as a vehicle for entrapment and procedural abuse.

I make this declaration freely, knowingly, and under penalty of perjury pursuant to 28 U.S.C. § 1746.

Executed on this 22 day of July, 2025:

Iain

Melchizedek

I declare under the penalty of perjury that the foregoing is true and correct.

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I reserve the right to publish this affidavit in connection with future public advocacy, memoirs, or legal analysis regarding administrative misconduct within federal agencies. Its content is protected under the First Amendment of the U.S. Constitution and the Copyright Act of 1976.

Statement of Purpose and Significance

This affidavit serves as more than a legal document. It is a case study in institutional betrayal, trauma-informed resistance, and the embodied costs of challenging bureaucratic power within US federal systems designed to serve vulnerable populations.

The detailed chronology presented herein documents how institutional betrayal operates at multiple levels: through the systematic re-traumatization of those seeking help, the weaponization of procedural complexity against program participants, and the transformation of compliance-oriented behavior into grounds for punishment. This pattern reveals how agencies and its officials can betray their stated missions while maintaining the facade of supportive services.

This affidavit also documents how government systems, under the guise of support, can place individuals under compulsion—pressuring compliance not through lawful transparency, but through vague procedures, withheld rights, and manufactured consequences. The experience I describe here illustrates how institutional actors often prioritize control over rehabilitation, punishing autonomy and treating lawful self-advocacy as defiance. In this light, my whistleblower experience and my VR&E participation reveal a deeper systemic pattern: that veterans, and citizens more broadly, are increasingly required to earn their rights through obedience rather than assert them through law. This dynamic turns democratic governance into bureaucratic management—where freedom is conditional, and dissent is pathologized.

The resistance strategies documented throughout this affidavit, meticulous documentation, regulatory citation, boundary-setting, and eventual protective disengagement, represent trauma-informed responses to institutional dysfunction. These approaches demonstrate how individuals can maintain integrity and legal grounding while navigating systems that increasingly respond to accountability requests with defensive escalation.

Perhaps most significantly, this affidavit captures the embodied costs of refusing to be complicit in institutional misconduct. The physiological and psychological toll of maintaining hypervigilance against procedural traps, the isolation resulting from principled non-compliance with improper demands, and the nervous system activation required to document systematic gaslighting, all reflect the somatic impact of challenging bureaucratic power.

This document stands as evidence that the process often becomes *the* punishment when individuals insist that institutions follow their own stated rules. It reveals how systems designed to rehabilitate can instead become vehicles for re-traumatization when their authority is challenged through proper legal channels.

I will publish this account not merely to document personal grievance, but to contribute to a broader understanding of how institutional trauma perpetuates itself, particularly within agencies serving populations already vulnerable due to prior service-related trauma. This affidavit may serve researchers, advocates, policymakers, and other veterans seeking to understand the dynamics of institutional betrayal and the costs of principled resistance within federal bureaucratic systems.

The intersection of whistleblower retaliation, veteran rehabilitation services, and administrative misconduct documented herein offers insights into how multiple systems of oppression can compound individual trauma while presenting themselves as sources of support and healing.

BACKGROUND OF MELCHIZEDEK - 75 OF 75



DEPARTMENT OF VETERANS AFFAIRS
VA Regional Office
Department of Veterans Affairs
VRE Division
JFK Federal Building, Rm 1675
Boston, MA 02203

07/15/2025

Mr. Iain Melchizedek
91 Crest Ave
Chelsea, MA 02150

In Reply Refer to:
301/28
Last 4 digits: 0017 / 00

Dear Mr. Iain Melchizedek:

This letter contains important information about your Department of Veterans Affairs (VA) Veteran Readiness and Employment (VR&E) benefits. Please read it carefully.

Our records show that you were unable to finish the training or other objectives of your rehabilitation plan. **We propose closing your case** because you have received maximum rehabilitation benefits under the VR&E program.

Your case cannot be closed as "Rehabilitated" because you do not meet the criteria outlined in 38 CFR 21.283. However, based on the services you have received including vocational testing and guidance, evaluation and career planning, individual written rehabilitation and employment plans to include academic instruction, tuition/fees/books, access to health care and counseling, financial assistance, case management and job placement services, we determined that your circumstances have improved in the following ways:

- You currently qualify for positions as computer security specialists, data analysts, and information security analysts with your Master's degree in Professional Studies in Analytics from Northeastern University obtained on 03/29/2025.
- You have demonstrated that you qualify for competitive, integrated employment in your approved vocational goal as outlined in your IWRP/IEAP plan, through your documented job search efforts over the last 60 days.
- You signed your IWRP/IEAP on 09/08/2023 agreeing to Employment through Long Term Services track.
- The field of data analytics has a projected growth of 36% with a high demand for employment in the greater Boston Massachusetts area where you currently reside (reference- <https://www.onetonline.org/link/localtrends/15-2051.00?st=MA>).
- Closing a case as rehabilitated in self-employment requires the claimant to successfully complete a plan of services for self-employment and satisfactory participation in employment services to ensure the business is operation, ensure sustainability of the business, and the claimant has successfully adjusted.

- On 01/16/2025, you confirmed by email your agreement to complete your current IWRP/IEAP under the Employment through Long Term Services track, which supports competitive, integrated employment, not self-employment.
- Therefore, you meet criteria for maximum rehabilitation gain closure-2, RC 037 as you completed some of the objectives of your rehabilitation and employment plans, the services provided by VRE assisted in your employability and you qualify for suitable employment in the field of data analytics.
- References used to make this determination include 38 CFR 21.283, M28C.IV.C.5, M28C.V.A.6, 38 CFR § 21.214(e) and § 21.257(d).

Therefore, we propose to discontinue your case because you meet the criteria for Maximum Rehabilitation Gain (MRG).

What if you disagree with this proposed action?

You have 30 days to tell us if you disagree with this proposed action. You may contact us within 30 days of the date of this letter and you may do any of the following:

Talk to a VR&E staff member about our decision and determine if we have the most current information about your situation.

Talk with a VR&E staff member about either re-entering your plan of services or changing the plan to meet your current needs.

Give us information that will help you continue receiving services or will help us reconsider closing your case.

What if you do not contact us?

We will take action to discontinue your program if you do not contact us within the 30-day limit. When your program is discontinued, you will no longer receive benefits under this program.

If you want to re-apply for the VR&E program in the future, you would have to provide justifiable information to restart your current program. Also, we would need to reevaluate your circumstances to determine if you need additional services.

How does this proposed action affect your VA benefits?

This proposed action does not affect your compensation or other VA benefits.

What if you have questions or concerns?

Please call 603-716-2605, email Amy.Coey@VA.GOV, or call 1-800-827-1000 if you have questions or need additional information on VA benefits. The federal number is 711 for the Telecommunications Device for the Deaf (TDD).

You may also contact me by mail at:

Veteran Readiness and Employment (VR&E) Intake Center
Department of Veterans Affairs

P. O. Box 5210
Janesville, WI 53547-5210

Sincerely yours,

Amy Coey
Vocational Rehabilitation Counselor (VRC)

cc: